

Director General's Foreword

2023 was a year when measures against organized crime and gun violence were in focus. The government's direction is clear; law enforcement must have access to more and better tools. Therefore, the government has initiated extensive investigative and legislative work on, for example, expanded camera surveillance, more and larger registers with biometric data, greater opportunities for law enforcement agencies to access information from other authorities and companies, as well as expanded possibilities to use covert coercive measures for preventive purposes. As a society, we need to both protect people's right to privacy and provide the police with effective tools in the fight against serious and organized crime. The benefits that surveillance entails in law enforcement must be proportionate to its intrusion into personal privacy. For IMY, it has been an important priority this year to contribute to this work. We have participated with experts in many investigations and have been a referral body in even more. We particularly highlight two things; first, we wish for a government investigation to be appointed with the task of conducting a comprehensive analysis of how the many proposals affect the right to privacy. Secondly, we point out the possibility of creating temporary laws that can be evaluated before they become permanent.

2023 was also the year when the whole world talked about artificial intelligence (AI). For the past couple of years, IMY has been working specifically with guidance for innovation actors. Uncertainty hinders innovation, and we encounter many who find issues related to data protection and privacy particularly difficult and complex. The significant need for in-depth guidance was the background for us, as the first authority in Sweden, to start a regulatory sandbox where we have now conducted two projects, the first on federated machine learning of AI in healthcare and the second on sensors as an alternative to camera surveillance in efforts to create safety in public spaces. The sandbox is now a permanent part of our operations.

2023 must also be described as a growth year for IMY. The government increased IMY's budget by nearly 40 percent starting in 2023. This enhancement was necessary and welcome. Since the middle of the year, when a large number of new employees have been recruited and introduced, we see clear results in the form of reduced processing times and case balances for all major case flows. During the year, we have also initiated over 200 supervisory cases, which is a significant increase from 120 the previous year, and decided on sanctions amounting to over 120 million kronor, compared to 10 million kronor in 2022.

2023 is also a year we have celebrated. In May, we marked 50 years as an authority. In 1973, Sweden enacted the world's first national legislation on data protection, and the same year, the Data Inspection Board was established. We celebrated the anniversary with a well-attended conference in a hybrid format, with the Minister of Justice as a speaker and three panel discussions. We have also celebrated reaching the finals in the competition for Sweden's most modern authority.

2023 has also been characterized by continued transformation of our work with complaints and supervision. At the end of the year, decisions from the Supreme Administrative Court confirmed that a person who submits a complaint to IMY has the right to appeal if IMY does not do what is requested in the complaint. A ruling from the Court of Justice of the European Union entails extensive requirements for the investigation of complaints. Next year, decisions are also expected regarding a new regulation with procedural rules for cross-border cases concerning complaints and supervision under the General Data Protection Regulation. Overall, these changes imply a need for comprehensive changes in our working methods and a significantly more extensive, resource-intensive handling of most of our cases. As we look ahead, we can note that there is intense work underway with new legal acts within the EU that will have extensive impacts on Swedish companies and the digitization of the public sector – and thus also for IMY's operations. In December, it was announced that the trilogue negotiations on the AI regulation have reached a conclusion, and a decision to adopt the regulation is expected within a few months. The negotiations on the regulation concerning the European Health Data Space (EHDS) are also in their final stages. Both of these regulations will have far-reaching consequences for the work with digitization, information security, and data protection and will give us new and additional tasks.

The right to privacy is easy to take for granted, but it is challenged every day. It may seem obvious that there should always be protected zones for confidential conversations and that surveillance must always be justified. In a contemporary context where the technical possibilities for surveillance are endless and challenges are piling up, IMY's mission to ensure the correct handling of personal data is more important than ever. The right to privacy is a necessary foundation for many other fundamental rights, such as the right to freedom of expression and the right to demonstrate. In 2024, we will continue to work towards ensuring that technology is combined with strong privacy protection and for a sustainable digitized future, where even our children and grandchildren can have a private life.

David Törngren

Acting Director General

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About the Swedish Authority for Privacy Protection

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The Swedish Authority for Privacy Protection (IMY) works to protect personal data, such as information about health and finances, ensuring that it is handled correctly and does not fall into the wrong hands. We also work to ensure that video surveillance, credit reporting, and debt collection are conducted properly. At the turn of the year, debt collection matters were transferred to the Financial Supervisory Authority.

- Our mission affects the entire society. Sweden is in the midst of a digital transformation that impacts all individuals and sectors of society. We advocate for sustainable digitalization where privacy protection is a natural part of new goods and services. We are convinced that it is possible to safeguard citizens' security and societal safety without unwarranted tracking and surveillance.
- Our mission includes monitoring compliance with data protection regulations. We are the national supervisory authority and issue permits in the area of data protection, for video surveillance, as well as for credit reporting and, until 2023, debt collection. When we conduct supervision, we have strong powers, including the ability to impose administrative fines. We are also part of a comprehensive EU collaboration and contribute to a uniform application of data protection regulations within the EU.
- We provide guidance and support to individuals and organizations. Every day, we receive a large number of inquiries from authorities, companies, and organizations that need guidance in interpreting and applying data protection regulations in their work. We have a regulatory sandbox for data protection to promote privacy-friendly innovation and sustainable digitalization. Individuals can also contact us with tips or complaints if they believe there are inaccuracies in the processing of personal data or to ask questions. They can also whistleblow to us on issues related to data protection.
- We contribute our expertise in connection with investigative and legislative work and are tasked with monitoring, analyzing, and reporting to the government on developments concerning new technology and the right to privacy.
- Our mission is becoming increasingly important due to the digitalization of society, exponential technological development, and the growing need to protect organizations against cyberattacks. Data protection is closely linked to good information and cybersecurity, and we have an important role in this broader perspective.

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1.1. Our Strategic Direction

Our vision is a secure information society – together we safeguard personal privacy. We work based on a strategic direction with the goal that by 2025, personal privacy and data protection will have a clear focus at all levels of society. Our vision helps us to focus on effects and is based on those we exist for.

By 2025, we want:

- Individuals to have good knowledge of their rights
- Private and public organizations to work more systematically with data protection and drive privacy-friendly digitalization
- Innovation and development of technology and services to occur in a way that respects personal privacy
- Sweden to have a clear privacy protection policy that contributes to sustainable digitalization
- IMY to remain an attractive employer

To achieve our vision for 2025, we need to have effective processes and set high goals. By ensuring that our work is efficient and of high quality, we contribute to placing privacy issues at the center of sustainable digitalization. We also help maintain trust in the data protection regulatory framework.

Our Vision

A secure information society

– together we safeguard personal privacy

Our Vision for 2025

That personal privacy and data protection receive a clear focus at all levels of society

Our Values

Accessibility, transparency, clarity, trust, and togetherness

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1.2. Outlook on Privacy Protection

Personal privacy and data protection are significantly affected by long-term and transformative changes in our environment, such as the pervasive digitalization of society and exponential technological development. In IMY's monitoring of the technological landscape, we have identified several trends with direct impacts on privacy protection.

1. The development of AI is progressing at a very high speed. Recently, the breakthrough of large language models has made it clearer to the general public what potential AI has and how it can change, for example, how we work and seek information. The use of AI will constitute a larger part of digitalization in the coming years across all sectors of society.
2. Data remains an important resource, both for businesses and the public sector. Data is needed as "raw material" in AI-based processes and is thus essential for the efficiencies that such processes can lead to. The ability to manage and transform data into utility is becoming increasingly important. Efforts to address the issue of more high-quality data are ongoing in both research and industry.
3. Many believe that the need for security can be met through identification using various biometric identification solutions. However, the overuse of biometric data is risky. A password that falls into the wrong hands can be changed, but if someone unauthorized gains access to a fingerprint or facial biometrics, this cannot be replaced with another.
A growing area is data concerning "biohealth," a mix of biometric data and other health markers. The collection of data related to biohealth is taking place on a broad front, for example, in smartwatches, apps, pressure sensors, and heat meters. For an average user, there is information about the person's food preferences, sleep habits, and lifestyle combined with biometric data. Altogether, this creates an almost complete picture of the person and their personality.
4. Virtual worlds are viewed as the future of the internet. Through virtual worlds, our experience of the internet will change. Some assess that the impact is as significant as when the internet first emerged. Virtual worlds enable massive data collection about individuals, primarily various biometric data or other health-related information.
5. The new generation of mobile networks, 5G, is being expanded, and in Sweden, the ambition was to reach 90 percent of the population by 2023. With 5G, the possibility for faster and more secure remote control of devices increases. 5G is considered a prerequisite for fully connected cities and homes.
6. The use of blockchain technology has increased in more sectors than just the financial one, and several government assignments are ongoing in this area. The connection of cryptocurrencies to the traditional financial system is increasing.

The global situation in 2023 has otherwise been characterized by several security challenges; the security political situation with hybrid warfare, the high level of terrorist threats against Swedish targets, and the restructuring of Swedish criminal policy to address domestic organized crime and curb gun violence. There is a close connection between data protection and information security. Requirements

for technical and organizational security measures can together work to strengthen robustness and resilience in society. Regarding criminal policy, the government is clear that law enforcement must have access to more and better tools. We can contribute to ensuring that effective law enforcement and the right to personal privacy are balanced satisfactorily, among other things, through guidance, participation in investigations, and responses to consultations.

1.3. The EU's Digital Decade

The decade of the 2020s is the EU's digital decade. This initiative aims to support Europe's digital transformation and primarily seeks to develop the EU's internal market and international competitiveness. One aspect of the digital decade is to develop new legal acts that provide the conditions for digital transformation while ensuring human rights, democracy, and the principles of the rule of law. The digital decade will create a new legal landscape for our digital present and future. The General Data Protection Regulation (GDPR) is one of the foundational elements for this transformation. The GDPR will not change in the digital decade but will protect personal data and the right to privacy in the application of the new legislation.

Since many of the regulations concern the handling of personal data, the digital decade will have a significant impact on privacy protection in society and on IMY. Two regulations are expected to have particularly large impacts:

- The AI Regulation is assessed to have a very significant impact on IMY and privacy protection. The EU has reached a trialogue agreement, and the regulation will be finalized in the spring of 2024. The AI Regulation will come into full effect two years after it enters into force.
- The regulation on the European Health Data Space (EHDS) has also progressed significantly in the negotiation process, and the Council's general orientation is now established. The assessment is that the regulation will be decided in 2024, but the implementation period may be longer than for the AI Regulation.

Table 1. A selection of ongoing and decided initiatives, EU regulations, and EU directives on digitalization affecting data protection.

Initiative

Purpose

Status and Timeline

Ongoing

AI Act, AI Regulation

Regulate which AI is permitted and manage high-risk AI, as well as strengthen the competitiveness and functionality of the internal market.

Triologue agreement reached.

Cyber Resilience Act

Increase security and resilience against cyberattacks within the EU.

Triologue negotiations ongoing.

Regulation on a European Health Data Space (EHDS)

Facilitate healthcare providers within and between EU countries to share patient data and enable secondary use of health data for, for example, research.

Triologue negotiations to commence.

CSAM Regulation

Combat online sexual abuse of children (see more in section 3.5.4).

Triologue negotiation to commence.

Decided

Acts on Interoperability

Manage the development of interoperability.

Various statuses.

NIS 2

Achieve a high common level of security in network and information systems within the EU.

Swedish investigation to be presented in February 2024.

Cybersecurity Act

Strengthen security and resilience in the EU, including through a framework for cybersecurity certification.

National implementation ongoing.

Regulation on Digital Services (DSA)

Make markets within the digital sector fairer and more competitive.

National implementation ongoing.

Data Governance Act (DGA)

Increase trust in data sharing, strengthen mechanisms to enhance access to data, and overcome technical barriers to the reuse of data from the public sector.

National implementation ongoing.

eIDAS 2, Digital Wallet

Enable Europeans to have a set of digital identity credentials recognized throughout the EU.

National implementation ongoing.

Data Act

Rules for reasonable access to and use of data.

National implementation ongoing.

1.4. Our Organization

IMY is a so-called single-authority agency with a transparency council. Organizationally, the agency is divided into departments based on the societal sectors of public operations and business, as well as a department for operational support.

-

In the business department, there are units that work with EU supervision, business supervision, security supervision, and our information service. From January 2024, there will also be a unit for national supervision.

-

In the public operations department, there are units that work with camera surveillance issues, the judiciary and defense, as well as supervision of and guidance to public operations.

-

The operational support department has an administrative unit, a finance and HR unit, a unit for IT, digitalization, and security, as well as a communications unit.

-

Additionally, there is a legal unit with an EU secretariat and a staff unit that supports the Director General. Finally, there are three central functions – data protection officer, information security officer, and security protection manager – that report directly to the Director General but have their organizational home in different units. The agency has office premises at Fleminggatan 14 in central Stockholm. In section 6.1, we describe in more detail how we have developed our organization over the year.

Figure 1. IMY's Organization in January 2024

Transparency Council

Director General

Staff

Legal Unit

Information Security Officer

Security Protection Manager

Data Protection Officer

EU Supervision

Camera Surveillance

Administration

Operational Support Department

Business Department

Public Operations Department

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Finance and HR
 IT, Digitalization, and Security
 Communication
 Judiciary and Defense
 Supervision of Public Operations
 Guidance for Public Operations
 National Supervision
 Business Supervision
 Security Supervision
 Information Service

1.5. About IMY's Annual Report

IMY's annual report for 2023 follows the same structure as the annual reports of recent years. Last year, our ambition was to make it shorter and clearer, and for 2023, the goal is to maintain that shorter and clearer approach. The operational statistics follow the structure of previous years. If a piece of information is missing, it is indicated as a dash in the table. In last year's report, there were several typographical errors in the comparison tables; these have been corrected and marked with a footnote for clarity. Several of the errors concerned figures from the year 2020, which have been omitted in this year's tables as they only cover the last three years. The statistics for the annual report are sourced from the operational systems on January 2 and reviewed by operational representatives on January 19, 2024.

We report unit costs only for our volume flows (inquiries, complaints, and personal data incidents) as well as for supervision of data protection and permits for camera surveillance. By doing so, we cover approximately 83 percent of our operational case inflow as well as the central case categories that are the most resource-intensive.

Following this introductory section, there is a brief summary of 2023 (section 2). This is followed by the reporting of the agency's tasks and results (sections 3–5) as well as a section on operational and organizational development during the year (section 6). Then, competence supply (section 7) and work environment, health, and sick leave (section 8) are described. The annual report concludes with an account of how the agency's appropriations have been utilized (sections 9–10).

The results reporting is divided based on operational areas. Data protection is the largest part of our operations and is reported in sub-areas:

- Data Protection (section 3)
 - outreach and guiding activities
 - complaints
 - supervision
 - work within the European Data Protection Board (EDPB) and other international cooperation
 - other tasks within data protection
- Camera Surveillance (section 4)
- Debt Collection and Credit Reporting (section 5)

Camera surveillance is covered by provisions in several regulations. Fundamentally, data protection regulations are applicable, but they are supplemented for certain types of camera surveillance by the Camera Surveillance Act. Therefore, cases concerning camera surveillance are included both in the statistics for data protection and are separately reported in the section on tasks within the camera surveillance area.

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1.5.1. About Our Overall Assessments

In the annual report, we make a number of overall assessments of our operations. In the assessment, we discuss how the operations function as a whole. The assessment is made on a three-point scale:

- Good; the operations are functioning well
- Satisfactory; the operations are functioning, but need improvement in certain areas

- Unsatisfactory; the operations do not have an acceptable result and improvement measures need to be implemented

The assessment is a weighting of quantitative criteria and qualitative reasoning. Quantitative measures of performance and result indicators do not exist for all parts of the operations. In these cases, the assessment is made solely based on qualitative reasoning. For the parts of the operations where we have quantitative measures, the assessment is based on three pillars:

- Our performances; the statistics regarding incoming and concluded cases, processing time, etc., that introduce the sections.
- Our result indicators; statistical indicators, which are found in connection with the result assessment.
- A qualitative reasoning; where we place the statistics in context and discuss what has influenced the outcome during the year, as well as how we have managed it.

IMY has no quantitative goals in the appropriation letter, but we have developed internal result indicators to measure the development of our operations. The result indicators have been formulated with different time specifications, mixing days and months. Some of the indicators harmonize with statutory deadlines, while others are those we have established ourselves. To facilitate understanding, the indicators in this year's annual report are stated in days as long as they are 30 days or fewer, and thereafter in months. This also applies in cases where the statutory deadlines are stated in days but exceed 30.

1.6. Reporting Requirements According to the Appropriation Letter

During the year, we had three reporting requirements in our appropriation letter.

- Increased knowledge of data protection issues among innovation actors¹. Read more in section 3.1.6.
- Assignment to government agencies to receive newly arrived job seekers and persons with disabilities for internships². IMY has, like other government agencies, since 2021 had the government's assignment to receive newly arrived job seekers and persons with disabilities who have reduced work capacity for internships. During 2023, we have not had any interns within the framework of this initiative.
- Assignment to implement energy-saving measures within the government administration³. IMY has reported the agency's energy consumption and the energy-saving measures taken on a monthly basis until March 31, 2023. The reporting has been done in accordance with the instructions of the Swedish Energy Agency. The Swedish Energy Agency has compiled the results of the reporting in report ER 2023:16 "Agencies' Work on Energy Savings Winter 2022/2023."

1. N2021/01266

2. Fi2020/04960, A2020/02583

3. Fi2022/02571

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2023 in Five Minutes

2

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During the year, IMY handled approximately 17,400 national cases. Of these, approximately:

3,600 complaints from individuals

3,800 written inquiries

4,300 responding phone inquiries

6,000 reports of personal data incidents

2,000 reports of who is the data protection officer

600 applications for permits, of which approximately 480 were applications for camera permits

In our supervisory activities

210/39

We initiated 210 supervisory cases, of which 39 were cross-border

173

We concluded 173 supervisory cases, of which eleven with decisions on fines

120,400,000

We issued fines totaling 120,400,000 kronor

15

0

500

1,000

1,500

2,000

2,500

3,000

3,500

4,000

4,500

5,000

Incoming

Concluded

Outgoing balance

1336

1430

1211

1922

1433 1368

887

15941525

1613

1375

933

1183

1357

1626

16501694

1566

2217

1457

2081

1209

1357

1122

DEC 2022

JAN

FEB

MAR

APR

MAY

JUN

JUL

AUG

SEP

OCT

NOV

DEC

2629
2843
3062
3551
4032
4101
4339
4089
3820
3776
3125
2501
2353

Diagram 1. Overall Development of Balances During 2023

(All case types, total number, incoming, concluded, balance per month)

Number

The number of incoming cases increased during the year. A total of approximately 17,400 cases were registered compared to approximately 15,800 in the previous year. Two of our three volume flows, complaints and personal data incidents, increased in scope. The number of inquiries decreased by approximately 400 cases.

The case balance increased during the first half of the year and decreased during the second, ending at roughly the same level as at the beginning of 2023. The decrease during the second half of the year is due to the fact that most of our newly hired staff were introduced to the operations then.

The balance mainly consists of complaints, personal data incidents, and camera permits.

In total, we initiated 210 supervisory cases and concluded 173. This is significantly more than the previous year. We made decisions on fines in eleven cases, and the total fines amounted to 120,400,000 kronor, compared to five fines totaling 9,720,000 kronor the year before.

During the year, we received approximately 600 applications for various permits, of which approximately 480 concerned camera surveillance.

In the annual report, we make overall assessments of our results. We note that parts of the operations function well. In our outreach and guidance activities, we have increased our ability to provide support one-to-many in several ways. For example, we have written several guidelines and made our regulatory sandbox permanent. We continue to be in demand as speakers and experts in investigations, and our webinars have hundreds of registered participants. Our international work is also functioning well, and we are very active in the EDPB. We have been leading in the work on several central guidelines developed within EU cooperation during the year.

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****Parts of our operations function satisfactorily but need improvement. The work on other tasks within data protection – which includes, among other things, work on personal data incidents, prior consultations, legality checks, and binding corporate rules – is one such category. Unfortunately, the processing time for all case types has increased, and for personal data incidents, it has doubled over the year. Regarding the work on camera surveillance, significant improvements have been made, but the handling of permits still has long processing times despite our prioritization of it during the year. The work on debt collection and credit reporting has also functioned satisfactorily and shows relatively comparable results to previous years, even though this work has had to take a back seat when we needed to prioritize complaints within data protection. The work on supervision has improved, and we now assess it as satisfactory. We initiate and conclude significantly more supervisions compared to previous years. ****

****We assess that the work on complaints does not have acceptable results and needs to be improved with further measures. The balances have been very high during the year, although the year ended with fewer cases in balance than we had when the year began. We conclude a significantly higher**

number of less complex and national cases while international cases are based on an already high case balance. We have highlighted in various ways, including in previous annual reports and budget documents, that the work on complaints has fundamentally changed in a way that has been very challenging for our entire operation. During the year, several rulings from the Supreme Administrative Court and the Court of Justice of the European Union also imposed additional requirements on our work with complaints. This means that the significantly increased funding we received starting in 2023 risks not having a major effect on our balances. The work on complaints will continue to be one of our most prioritized issues in the coming years.**

Diagram 2. Distribution of time during 2023

(broken down by operational areas of data protection, camera surveillance, and debt collection and credit reporting, as well as broken down into tasks)

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Data Protection 78%

Camera Surveillance 21%

Debt Collection and Credit Reporting 1.4%

Time spent in percentage per operational area

Supervision 20%

Other Tasks 11%

Court Processes 1%

Work within EDPB and other international cooperation 6%

Complaints 10%

Consultations 8%

Other 3%

Training and Conferences 3%

Innovation Hub 3%

Information and Communication 8%

Inquiries 6%

Of which tasks within outreach and guiding activities

Outreach and Guiding Activities 31%

Of which tasks within data protection

Of which tasks within debt collection and credit reporting

Questions 0.2%

Complaints 0.6%

Supervision 0.1%

Other 0.1%

Permits 0.5%

Complaints 1.0%

Questions 0.7%

Supervision 3.5%

Court Processes 0.6%

Permits 14.8%

Of which tasks within camera surveillance

Other 0.3%

The distribution of time between our three operational areas – data protection, camera surveillance, and debt collection and credit reporting – largely follows the same structure as previous years. In total, we allocated 78 percent of our resources to our mission within data protection. This is slightly less than last year when the figure was 83 percent.

Outreach and guiding activities constitute the largest sub-area with 31 percent, followed by supervision at 20 percent and complaints at 10 percent. These are roughly the same levels as last year.

**We allocated 21 percent of resources to camera surveillance, primarily on permits, which account for

15 percent. This means we have spent more time on camera surveillance issues than in previous years, thanks to the resource increase we received for 2023. We have now been able to maintain a level of more time spent even compared to the years when we received temporary funds to work on camera permits.**

Approximately 1 percent of our resources were allocated to our assignments on debt collection and credit reporting.

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Result Reporting on Data Protection

3

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3.1. Outreach and Guiding Activities

3.1.1. Inquiries

Table 2. Inquiries, broken down by type

2023

2022

2021

Telephone Inquiries

Number of answered telephone inquiries

4,335

4,650

4,967

Percentage of answered telephone inquiries

82%

86%

63%

Inquiries to the information service

Number of incoming written inquiries

3,542

3,572

3,755

Number of concluded written inquiries

3,723

3,386

3,782

Processing time, written inquiries in days

27

19

17

Cost per unit for written inquiries, SEK

1,085

998

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Qualified Inquiries

Incoming qualified inquiries

246

282

204

Concluded qualified inquiries

284

290

210

Processing time for qualified inquiries, days

76

52

91

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20

0

100

200

300

400

500

Incoming

Concluded

Outstanding Balance

266

267

138

325

275

268

154

299

393

233

323

253

236

306

415

325

426

380

451

345

337

275

283

292

DEC 2022

JAN

FEB

MAR

APR

MAY

JUN

JUL

AUG

SEP

OCT

NOV

DEC

221

195

324

374

394

304

321

212

111

40

48

40

Diagram 3: All written inquiries

(incoming, concluded, balance per month 2023)

488

Number

Part of IMY's mission is to respond to inquiries regarding data protection and the right to privacy. Each year, we answer thousands of written and oral questions, approximately half of which come from individuals and the other half from businesses and organizations. Our goal in responding to inquiries from private and public entities is to increase knowledge about data protection and make it easier to comply with data protection regulations. The total number of written inquiries amounted to just over 3,500 in 2023. The variation in inquiries is significant, but there are several common themes. We have developed various standard responses that we can use for recurring questions. The majority of the written inquiries received by the authority are processed within two days from the time the case is assigned to a case handler. Work is ongoing to continue streamlining the process surrounding inquiries. An important part of this work is to continuously improve the information on our website.

There are also inquiries that are more complex and thus take longer to answer. These account for about 7 percent of the written inquiries. This type of inquiry affects both processing time and case balance. IMY can confirm that larger societal issues influence the types of inquiries we receive.

Throughout the year, we have seen an increased influx of questions related to surveillance cameras in connection with organized crime and the needs of law enforcement agencies for processing personal data, as well as questions regarding the security of personal data. We also observe an increased influx of credit reporting inquiries, which can be linked to a deteriorating economic situation for individuals.

3.1.2. External Webinars, Conferences, and Lectures

Table 3. External Webinars, Conferences, and Lectures

2023

2022

2021

Number of Lectures

27

28

32

Number of Webinars

6

5

1

Number of Conferences

2

1

1

Our goal is to be a knowledge bank, where private and public entities receive support in working more

systematically with data protection and driving privacy-friendly digitalization. Webinars, conferences, and lectures are various ways for us to provide guidance and support. During the year, we conducted six live-streamed webinars. The most attended, with 1,000 registered participants, focused on IMY's new camera guidance. The others addressed our regulatory sandbox on data protection, our report on personal data incidents, innovation and data protection, accreditation of supervisory bodies, and information security within the framework of the Think Secure campaign. The webinars were broadcast from IMY's studio. We also participate in others' webinars. For example, we participated in the Ethics Review Authority's webinar on personal data processing in research.

In May, we organized a hybrid conference on the theme of data protection 50 years, with approximately 100 registered for the conference and 1,000 for the digital broadcast. During the conference, we highlighted that the General Data Protection Regulation turned 5 years old and that data protection in Sweden turned 50 years old. The conference addressed, among other things, the development of data protection.

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****Information Security and Cybersecurity and How to Reconcile Innovation and Privacy Protection.****

In December, we organized our annual Data Protection Officer (DPO) conference for approximately 750 registered data protection officers. At the conference, we conveyed a mix of knowledge, inspiration, and working methods. This year, we discussed experiences from a data protection officer's review routine, adequate protection levels for the USA, as well as IMY's supervision and our guidance work.

This year, we were finalists for the award for Sweden's Most Modern Authority, which is presented at the Quality Fair. The theme of this year's fair was "A Sustainable Welfare," and it primarily serves as a meeting place for decision-makers and business developers within the public sector. We participated as exhibitors at a fair for the first time since before the pandemic. The initiative is assessed as very successful, and we will continue to participate in fairs where our prioritized target groups meet.

Throughout the year, we have lectured at a large number of external events, both digitally and physically. In total, our employees held 27 lectures during the year and participated in conferences for prioritized target groups. We were also represented during Almedalsveckan, where we participated in eight seminars. These addressed, among other things, how we create regulations that promote and stimulate digital innovation and what is required to take advantage of new technology in healthcare.

In 2023, we began work on producing films with basic knowledge about the General Data Protection Regulation (GDPR). The ambition is for the films to be available on our website and to replace the basic training sessions we previously held a couple of times a year. The films will be published in 2024.

****3.1.3. Consultations and Other Participation in Legislative Work****

****Table 4. Consultations****

2023

2022

2021

Number of consultations answered

151

150

164

Number of investigations we participate in

20

12

7

A part of IMY's vision is to contribute to the development of a clear privacy protection policy by supporting the government and parliament, participating in investigations, and being a constructive consultation body. IMY ensures that the proposals submitted comply with the requirements set out in data protection legislation.

In 2023, IMY responded to just over 150 consultations. There has been a steady inflow of

consultations throughout the year. We see that our "Guidance for Privacy Analysis in Legislative Work" has been used in several legislative products and that more privacy analyses are now being conducted in investigative work.

Many of this year's consultations have been related to more effective crime fighting, for example, the possibility for law enforcement agencies to use biometric data, traffic data retention, and preventive coercive measures. We also see that the consultations have largely concerned how entities other than law enforcement agencies should contribute to crime prevention efforts in various ways, particularly against welfare crime.

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The possibility for authorities and other actors to exchange personal data has also been a theme in this year's consultations. The Swedish Authority for Privacy Protection (IMY) has, in several consultation responses, emphasized the importance of the government appointing an inquiry in the future to evaluate the overall impact on the right to privacy due to the extensive legislative work in the area of crime prevention. We have also suggested making greater use of the opportunity to enact temporary laws.

Throughout the year, employees from IMY have participated as experts in 20 governmental inquiries, of which eight have been initiated and ten have been concluded during the year. Almost half of the inquiries are related to crime prevention. Compared to 2021, IMY's participation in the number of inquiries has nearly tripled.

3.1.4. Guidance and Reports

Part of our vision is to facilitate for private and public entities by providing guidance on data protection. We also work to increase knowledge about data protection and privacy, and we publish several reports annually.

In 2023, we have worked to create a more strategic and systematic approach to guidance. This includes analyzing thematic content in our case flows and inventorying the need for guidance from various target groups. During 2023, we have published several reports as part of this work.

- Report on Personal Data Incidents

The report describes patterns in reports of personal data incidents from 2019 to 2022. The report shows that nearly six out of ten reports are considered to be due to the human factor. In the report, we compare reports of personal data incidents in the Nordic countries from 2019 to 2022. The comparison shows that entities in Denmark report three times as many incidents, and entities in Finland reported twice as many incidents as Sweden. Based on this, we have concluded that there is likely an unreported number of about 10,000 personal data incidents in Sweden.

- Data Protection Work in Practice

The report is based on a survey directed at entities that had a data protection officer registered with IMY. The survey is part of a larger follow-up to our national privacy report from 2019. In the report, we describe that data protection work requires persistence and that it is important to continuously involve the data protection officer in matters concerning personal privacy and data protection. Entities need to prioritize security work in data protection efforts for it to be taken to the next level. The work on organizational security measures also needs to be prioritized. For example, entities need to establish guidelines and procedures for how security work should be conducted. The role of the data protection officer needs to be clarified, as data protection officers, especially those working part-time in the role, may find the assignment unclear.

- Guidance on Camera Surveillance

The guidance is an updated and expanded version of a previous guidance. It is aimed at all entities that use camera surveillance and is intended to support practical work with camera surveillance. The guidance outlines...

4. IMY report 2023:2. Reported Personal Data Incidents 2022.

5. IMY report 2023:1. Data Protection Work in Practice.

6. IMY report 2023:3. Guidance on Camera Surveillance.

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the practice that has so far been developed through IMY's assessments and supervision as well as court processes. In the guidance, we describe how businesses planning to use surveillance cameras can operate, and we present statistics for the period from August 1, 2018, to June 30, 2023.

3.1.5. Collaboration

Our mission regarding the right to privacy and data protection affects many in society. Collaborating with actors who have related missions, goals, or interests as IMY is a success factor for us as an authority and a way for us to reach more people. Over the year, we have both initiated new collaborations and deepened ongoing ones, leading to efficiency gains for individuals, businesses, and society.

IMY's innovation hub has collaboration as a consistent working method. During the year, we, together with the Agency for Digital Government (DIGG), developed a methodological support on data protection for public actors who wish to innovate in their operations.⁷ In addition, there is ongoing collaboration with, for example, Vinnova, AI Sweden, RISE, IoT Sweden, and several researchers, as well as with authorities and actors interested in our regulatory sandbox.

As part of the agency's tripartite collaboration with the Agency for Civil Protection and Emergency Planning (MSB) and DIGG, we have participated in exchange services where staff share experiences and working methods. In our collaboration with MSB, we have contributed to the information security month "Think Secure" and to the Sensor Council. Together with MSB and the Security Police, we have also participated in a lecture series for the public sector. We, together with DIGG, the Swedish Competition Authority, and the Swedish Patent and Registration Office, wrote a joint statement in advance of the government's research proposition.

We have continued our collaboration with the Swedish Competition Authority with the aim of sharing knowledge and discussing overlapping areas of interest. During the year, we have collaborated on the interpretation and division of responsibilities regarding the regulation on digital markets (DMA). The Swedish Post and Telecom Authority also has related questions and interests, and we have continued to collaborate with them on issues concerning electronic communication. In the area of surveillance, IMY has collaborated with the Security Industry. Regarding debt collection and credit reporting, we have collaborated with the Financial Supervisory Authority.

In the law enforcement area, we have exchanged experiences with the Swedish Inspection Authority for Defense Intelligence Activities. We have also held collaboration meetings with the Police Authority and have met with data protection officers at law enforcement agencies.

3.1.6. Guidance for Innovation Actors and Regulatory Sandbox

By providing guidance and support to innovation actors, IMY promotes sustainable innovation and technological development. During the year, IMY completed the government assignment we received in 2021, and the work of providing various types of guidance and support to the innovation system is now a permanent part of our operations.

The government assignment regarding guidance for innovation actors that IMY has had since 2021 was concluded in March 2023 with a final report.⁸ In April, we launched IMY's innovation hub, which is the center for our work in providing support and guidance to innovation actors. A significant

7. www.digg.se/kunskap-och-stod/metodstod-for-dataskydd-vid-innovation

8. IMY 2023: Knowledge-raising efforts for the innovation system on privacy and data protection issues. Final report of the government assignment. DI-2021-5817.

****Part of the work is done in collaboration with others, and our starting point is to always collaborate with actors outside the authority whenever possible.****

As part of the government assignment, we, as the first authority in Sweden, conducted a regulatory sandbox on data protection. This is a way to provide in-depth guidance on gray area issues where there is a lack of practice. A project involving new technology or new uses of existing technology is given dialogue-based guidance. In this way, we have the opportunity to explore how the data protection regulations might be applied when using new technology, without having to conduct

supervision. The guidance is summarized in a public report that provides learning for the entire innovation system, thereby promoting innovation and contributing to sustainable digitalization. It is a significant learning opportunity for us, allowing us to address questions about new technology in relation to data protection regulations early on.

Our first regulatory sandbox concerned federated machine learning, where two different healthcare providers wanted to train an algorithm on patient data by only sharing the model and its training, not the patient data. The final report was published in March. A second regulatory sandbox has been conducted during the year, and the report was published in the spring of 2024. This one deals with the use of Lidar sensors in public environments to follow up on safety-enhancing work. During the year, a decision was made to make the regulatory sandbox a permanent part of our operations, and the opportunity for expressions of interest was opened in the fall. There was significant interest in participating.

The innovation hub also works on other guidance activities, such as lectures and webinars, and accounts for a large part of the authority's lectures. We are often invited to talk about our regulatory sandbox, both to innovation actors interested in the results and to other authorities interested in the working method.

In the fall, a political agreement was reached on the AI regulation, and we can state that it will have a significant impact on our operations. Throughout the year, we have analyzed and deepened our knowledge of the AI regulation, particularly focusing on the AI regulatory sandboxes that are proposed.

****3.1.7. Overall Assessment of the Work on Outreach and Guidance Activities on Data Protection****

****Table 5. Result Indicators, Outreach and Guidance Activities****

| Year | 2023 | 2022 | 2021 |

|-----|-----|-----|-----|

| Percentage of data protection inquiries to the information service that are answered after more than 10 days (processing time) | 74% | 76% | 37% |

| Percentage of the balance of data protection inquiries to the information service that are older than 10 days (balance age) | 13% | 76% | 44% |

| Percentage of the balance of qualified data protection inquiries that are older than 2 months (balance age) | 82% | 46% | 51% |

9. IMY 2023: Federated machine learning between two healthcare providers – final report from IMY's pilot project with regulatory testing activities. IMY-2023-2602.

10. Safety measurement in public environments using IoT technology. Final report from the Swedish Authority for Privacy Protection's regulatory sandbox on data protection. IMY-2023-15495.

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****Activity****

****Outreach and Guidance Activities****

****Assessment****

Good, the operations are functioning well.

****Performance****

Our performances in outreach and guidance activities can be found in tables 2, 3, and 4.

Unfortunately, we see that the processing time for the volume flow of inquiries is increasing in the full-year statistics. Participation in government investigations has increased significantly.

****Result Indicators****

IMY assesses that the work with inquiries is functioning well despite the continued high percentage of questions that are not answered within 10 days.

****Qualitative Reasoning****

We assess that the quality of the operations and our ability to provide guidance one-to-many has increased. The overall assessment is therefore that the operations are functioning well.

Our regulatory sandbox is the first in Sweden, and our investment in guidance for innovation actors is successful. We achieve significant dissemination both for our various forms of written guidance and conduct many lectures on the topic.

We have written several reports and published guidance on camera surveillance. We see that the combination of guidance and webinars allows us to reach many more than before. We have continued with web-based seminars, reaching hundreds of people on most occasions.

We have also made other investments where we have reached many recipients. For example, we participated as exhibitors at the Quality Fair because we were finalists in Sweden's most modern authority. We were present in Almedalen and participated in several seminars and panels as speakers.

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3.2. Complaints

Table 6. Complaints

2023

2022

2021

Number of received complaints and tips regarding data protection

3,646

2,245

2,847

– of which complaints

3,195

2,142

2,329

– of which tips

451

103

518

Number of concluded complaints and tips regarding data protection

3,807

1,757

2,127

– of which complaints

3,346

1,648

1,616

– of which tips

461

109

511

Processing time for complaints, days

101

73

51

Cost per complaint, SEK

5,326

11,9991

10,487

1 In the annual report 2022, we incorrectly stated this value as 11,990.

0

200

400

600

800

1,000

1,200

1,400
1,600
Received
Number
Concluded
Closing balance
208
222,202
360
106
244
88
345
254
275
368
201
473
357
620
280
459
283
351
248
163
172
174
88
DEC 2022
JAN
FEB
MAR
APR
MAY
JUN
JUL
AUG
SEP
OCT
NOV
DEC
911
1,031
1,051
1,305
1,552
1,459
1,187
924
745
677
762

If a person feels that someone has processed his or her personal data incorrectly, the person has the right to submit a complaint to IMY. The person who submits a complaint is a party to the case that is initiated. Most complaints are submitted via our e-service. The work with complaints consists of assessing and handling each complaint. It is a large case category where case balances can easily build up. During 2023, approximately 3,200 complaints have been received, which is an increase of nearly 50 percent.

In the spring of 2023, the authority launched an e-service for submitting complaints. The purpose of the e-service is to make it easier to submit a complaint to IMY. We assess that a large part of the increased inflow is due to the fact that the e-service has facilitated for individuals. The new e-service has been misused to some extent, for example, to contact IMY or to express general dissatisfaction. Work is ongoing to improve the e-service. We have, among other things, added guiding questions and texts.

Approximately 60 percent of incoming complaint cases are concluded with a decision that no action will be taken. The most common reasons for this include that there is no deficiency according to the Data Protection Regulation, that it is unclear what the complaint concerns, that the complainant does not want IMY to contact the data controller, that the issue should be handled by another authority such as the Swedish Post and Telecom Authority, that the complaint concerns publications on sites that have constitutional protection, or that the data controller has not had sufficient time to handle, for example, a request for access.

In about 20–30 percent of incoming cases, an information letter is sent to data controllers. The purpose of sending an information letter is for the organization itself to review whether there have been any deficiencies in handling. In these cases, IMY does not take a position on whether any error has been committed in the individual case. We assess that the information letters have a relatively good effect. Approximately 80 percent of all cases are assessed and addressed without any in-depth review being conducted. Cases that require further action, cross-border cases, recurring cases where IMY has previously taken an initial action, and cases that are assessed to be relevant for supervision are sent to another operational unit for assessment.

We are working to address the balances and reduce processing times in other complaint cases as well. A large part of these are cross-border cases. In these cases, we do not control all lead times, which affects the processing time.

3.2.1. Significantly changed legal situation regarding complaints

In the autumn of 2023, judgments from the Supreme Administrative Court (HFD) and the Court of Justice of the European Union have significantly changed the legal situation regarding the handling of complaints.

1. HFD¹¹ has, through two rulings in November, established that individuals who submit a complaint have the right to appeal the decision in the complaint case if the decision means that IMY will not do what the individual requests in their complaint.

Previously, the practice has been that individuals who submitted complaints do not have the right to appeal our decisions in the complaint case or in a supervisory case initiated due to the complaint, nor do they have the status of a party in the supervisory case that is initiated. Due to HFD's new rulings, IMY now assesses that individuals who report complaints are parties in the cases that are initiated, both the complaint case and the supervisory case based on the complaint. This applies to both national and cross-border cases.

2. The Court of Justice of the European Union¹² has, through a new ruling in December, established more extensive requirements on the investigative duty of data protection authorities in complaint cases. This means more comprehensive investigations of complaint cases, that supervision due to a complaint is initiated more often, and that supervision cannot be limited to the same extent as before.

11. Supreme Administrative Court; 2023 ref 54 I and II, from November 17, 2023.
12. Judgment of the Court of Justice of the European Union on December 7 in the joined cases C-26/22 and C-64/22, UF and AB against Land Hessen and Schufa Holding AB.
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The decisions significantly impact the authority's work with complaints and require more resources. This means that we must deprioritize, among other things, parts of our guidance work, the work with risk-based supervision, as well as our ability to participate in investigative and legislative work. It also means longer processing times and higher backlogs for other mandatory tasks, such as permit applications.

3.2.2. Overall Assessment of the Work with Complaints about Data Protection

Table 7. Result Indicators, Complaints Data Protection

2023

2022

2021

Percentage of complaints responded to within 3 months (processing time)

60 %

83 %

79 %¹

Percentage of the backlog of complaints older than 3 months (backlog age)

63 %

53 %

58 %

¹ In IMY's annual report for 2022, we incorrectly stated that this figure was 88 percent; according to our annual report for 2021, the correct figure is 79 percent.

Activity

Complaints about data protection.

Assessment

Unsatisfactory; the operation does not have an acceptable result, and more improvement measures need to be implemented.

Performance

Our performance regarding complaints about data protection is found in Table 6. Already in 2022, we could see a negative trend with longer processing times and increasing backlogs. We have taken measures to improve handling and see clear trends towards improved results from the summer onwards. However, the full-year statistics are heavily influenced by the backlog increasing during the spring. We continue to have a large proportion of cross-border cases, which are particularly time-consuming and have long processing times.

Result Indicators

Even in our result indicators, there are signs of deterioration. It is clear that we need to take further measures regarding both resources and working methods.

Qualitative Reasoning

For many years, we have highlighted that the work with complaints has fundamentally changed in a way that is very challenging for us to manage. The international cases are particularly time- and resource-intensive.

During the year, it has been a high priority to improve our work with complaints. Statistics from the summer onwards indicate that the many measures we have implemented to streamline the work and the resource increase we have allocated are yielding positive results. However, we still have a large proportion of cross-border cases, which are particularly time-consuming and have long processing times. It is primarily the work with national cases that is reflected in the statistics.

The fact that complainants are now assessed as parties with the right to appeal, as well as more extensive requirements for the investigation of complaints, places additional demands on our

processing going forward. The work with complaints will continue to be one of our most prioritized issues for improvement.

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3.3. Supervision

Table 8. Supervision and Corrective Powers

2023

2022

2021

Number of initiated supervisory cases

207

120

101

– of which surveillance

55

42

22

– of which the Crime Data Act

4

1

0

Number of concluded supervisory cases

170

104

33

– of which surveillance

58

38

6

– of which the Crime Data Act

3

3

1

Total processing time for supervisory cases

263

223

321

Cost per supervisory case, SEK

214,220

258,933

332,659

Corrective powers

–

–

–

Total number of corrective measures under the Data Protection Regulation

43

65

20

– of which warnings

0

1

2
– of which reprimands
19
31
6
– of which recommendations
0
1
0
– of which orders
13
27
5
– of which bans on continued processing
0
1
0
– of which revoked certifications
0
0
0
– of which administrative fines
11
4
7
Number of preventive and corrective measures under the Crime Data Act, total
1
2
4
– of which preventive advice, recommendations, remarks
1
0
0
– of which warnings
0
0
0
– of which corrective advice, recommendations, or remarks
0
0
0
– of which orders
0
1
3
– of which bans on continued processing
0
0
0
– of which administrative fines
0
1
1

One of our fundamental tasks is to monitor the application of rules within data protection. We have the authority to, among other things, decide on administrative fines. By having effective processes for supervision, we contribute to maintaining trust in the data protection regulatory framework. The work with supervision is a central part of our operational activities. During the year, intensive work has begun to utilize our increased resources and to strengthen our ability to conduct effective supervisory work. This has resulted in both more decisions on fines and more initiated and concluded complaint supervision.

3.3.1. Supervisory Decisions and Fines

The reorganization carried out in the spring has resulted in more operational unit managers with better conditions to conduct close leadership in the supervisory work. By creating more units, it was possible to streamline tasks, and more case handlers have been able to focus more on supervisory work. As a result of this, we have been able to complete

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several larger supervisory actions. This has, in turn, meant that we have made more decisions regarding administrative fines and for a higher total amount compared to previous years. The size of the administrative fines can amount to a maximum of 20 million euros or four percent of a company's or group's annual turnover, whichever is higher, for private entities. For authorities and public entities, the fine can amount to 10 million kronor. Simplified, one can say that the amount is determined by the severity of the violation and the annual turnover of the supervisory subject. The EDPB has developed guidelines for how the administrative fines should be determined, but it is still a complicated task to calculate the fines since the practice is still limited.

During 2023, eleven supervisory cases have led to administrative fines. IMY decided on fines totaling 120,700,000 kronor in these cases. The corresponding figure for 2022 was 9,720,000 kronor. Here are some of the decisions described.

- Spotify. IMY found that the information provided by the company to individuals about how their personal data is processed was not sufficiently clear and decided on an administrative fine of 58,000,000 kronor.
- Trygg-Hansa. IMY noted that Trygg-Hansa had security deficiencies that resulted in a large number of customer data being accessible on the internet and decided on an administrative fine of 35,000,000 kronor.
- Bonnier. IMY found that the company had profiled its customers and website visitors without their consent and decided on an administrative fine of 13,000,000 kronor.
- Tele2 and CDON. IMY decided on administrative fines of 12,000,000 kronor and 300,000 kronor respectively for the companies transferring personal data to the USA via the analytics tool Google Analytics.
- The Education Committee of Stockholm City. IMY decided on an administrative fine of 800,000 kronor because the camera surveillance at Aspuddens School had been too extensive.
- The Children and Education Committee of Östersund Municipality. IMY decided on an administrative fine of 300,000 kronor against the committee for having implemented the digital school platform Google Workspace without a consequence assessment.
- Region Skåne. IMY decided on an administrative fine of 200,000 kronor for inadequate security after the region stored sensitive personal data on an unencrypted USB drive that was subsequently lost.

3.3.2. Complaint-based supervision

During the second half of the year, we have gained significantly increased capacity to conduct complaint-based supervision, and by the end of the year, a large number of complaint-based supervisory actions have been initiated. However, the rulings of the Supreme Administrative Court (see 3.2.1. above) have already dampened the effectiveness of this work.

Most complaints are directed at businesses. Approximately one-third of the complaint-based supervisory actions concern neighbors who have complained about camera surveillance (read more in section 4).

3.3.3. Cross-border supervision

The cross-border cases involve businesses or individuals in several EU/EES countries. An individual can submit a complaint in their home country, but it is where the business is located that determines which European data protection authority is responsible.

****Supervisory Authority and Investigation of the Matter****

Since Sweden has many large companies with international operations, we also have many cross-border supervisory matters. IMY has initiated 39 cross-border supervisory matters and concluded 17 in 2023. The work with cross-border supervision involves a more complicated process compared to a national matter. We assess that the processing time for a cross-border supervision is approximately 1.5 times longer than for a national supervision. According to the Data Protection Regulation, the responsible supervisory authority must cooperate and communicate with other relevant supervisory authorities during the processing. Investigation materials, drafts of decisions, and decisions are translated into English, shared, and commented on, usually in several rounds. The comments from the relevant supervisory authorities can be incompatible, which requires coordination by the responsible authority. Consensus must be reached before the responsible authority can make a decision in the matter. If the authorities do not agree, the matter goes to the EDPB for dispute resolution.

IMY is also a relevant supervisory authority in many cross-border matters. As a relevant supervisory authority, we participate in the materials and drafts and can provide comments and objections. Throughout the year, particularly the decisions of the Irish Data Protection Authority regarding large American tech companies such as Meta have led to the involvement of many other relevant supervisory authorities, including Sweden.

****3.3.4. Overall Assessment of the Work on Data Protection Supervision****

****Activity****

Data Protection Supervision

****Assessment****

Satisfactory; the operation functions, but it needs improvement.

****Performance****

Our performances in data protection supervision are found in Table 8. We have initiated almost twice as many supervisions and concluded many more than in previous years. The processing time for national matters has decreased. However, the processing time for cross-border matters is still very long. It is difficult for IMY to influence the processing time as soon as a matter becomes cross-border. The development we see with an increasing number of cross-border supervisory matters will negatively affect our processing times.

****Result Indicators****

Indicators are lacking.

****Qualitative Reasoning****

We assess that the operation functions satisfactorily but can be improved. For several years, our goal has been to improve and streamline the supervisory work, for example, by reducing processing times. In 2023, we have focused on improving the work with supervision, which is evident in the performances. We have particularly worked on addressing older matters and initiating complaint-based supervisions. The work on continued increased efficiency and quality in our supervision, as well as adapting our working methods based on the fact that complainants are now parties in our matters and can appeal them, will be a priority in the coming years.

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****3.4. Work within EDPB and Other International Cooperation****

****Table 9. Specific Matters within EDPB Cooperation****

| Year | 2023 | 2022 | 2021 |

|-----|-----|-----|-----|

| Number of dispute resolution matters | 3 | 5 | 1 |

– of which number of matters where IMY is responsible	0	0	0
– of which number of matters where IMY is relevant	3	5	1
Number of general questions/requests for assistance from other countries	392	382	339

The Data Protection Regulation is a common EU legislation. The application and interpretation of the regulation is a common EU effort, and many governing decisions and positions are made by the EDPB at the EU level. Our goal is to participate in all working groups within the EDPB and take a leading role in the work, especially on issues that we assess to be particularly important for Swedish interests or where we have experiences to contribute.

****3.4.1. Joint Guidelines, Recommendations, and Opinions****

Within the EDPB, extensive and intensive cooperation takes place to issue joint guidelines, recommendations, and opinions to support individuals, businesses, and the application of law. IMY actively participates in this work, especially on issues that are deemed to be of particular interest to us in our national mandate. During the year, the EDPB adopted eleven guidelines, of which nine were adopted finally after being subject to public consultation.

IMY has participated as rapporteurs in the work on three of the guidelines adopted during the year; the guidelines on facial recognition in law enforcement, on the right for data subjects to access their personal data, and on the interplay between Article 3 and the provisions on international transfers in Chapter V of the GDPR.

Additionally, IMY has participated as rapporteurs in ongoing work on three guidelines; data protection in the research area, the interpretation of the legal basis of legitimate interest, and public authorities' use of social media. We have also chaired the working group that works to achieve harmonization around the application of sanctions. Even in cases where IMY does not participate as rapporteurs, we closely follow the work and ensure that our views are expressed and taken into account.

To facilitate organizations wishing to apply for approval of binding corporate rules, the EDPB has also finally adopted a recommendation during the year on what such an application should contain.

In addition to guidelines and recommendations, the EDPB has also produced 35 opinions in 2023 in response to requests from national supervisory authorities. These opinions have concerned the supervisory authorities' drafts of decisions on various issues, such as the approval of binding corporate rules and proposals for accreditation criteria for monitoring and certification bodies. Furthermore, the EDPB has commented on the EU Commission's proposal for a decision on an adequate level of protection for the USA and the Data Privacy Framework. The EDPB has also adopted joint opinions together with the EDPS, the data protection authority for EU institutions, on two regulatory proposals from the Commission.

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****3.4.2. Other Work within EDPB****

The EDPB has a mechanism for resolving disputes when data protection authorities have been unable to reach consensus in cooperation on cross-border matters. In 2023, the EDPB made decisions in two such cases. One concerned Meta and issues regarding the transfer of personal data outside the EU. The other involved TikTok and questions about misleading design and age verification. Additionally, the EDPB ruled on a decision within the framework of a so-called urgent procedure at the request of the supervisory authority in Norway, after they decided on urgent measures concerning Meta. The case dealt with the question of the legal basis for behaviorally targeted advertising. The EDPB's decisions in these matters are primarily directed at the responsible national supervisory authority but have a precedent-setting effect for all. As was the case last year, IMY, together with several other supervisory authorities within the EU/EEA, participated in a coordinated action to jointly address an agreed issue. In 2023, the action concerned the role and status of data protection officers. The EDPB has developed and published a joint report based on the national reports prepared by the various supervisory authorities. The work on coordinated actions continues, and the EDPB has decided to take a closer look in 2024 at how the right of data subjects to access processed data is upheld.

Within the EDPB, there is a special committee, the Coordinated Supervision Committee (CSC), which

works on coordinated supervision of the EU common information systems SIS and IMI, as well as the processing of personal data within Europol, Eurojust, and others. IMY is a member of the committee along with other national supervisory authorities.

During the year, the EDPB held 15 plenary meetings. Three of these were two-day meetings held in person in Brussels. At the meeting in May, the previous chair was thanked after her five-year term expired, and the head of the supervisory authority in Finland, Anu Talus, was elected as the new chair. A significant portion of the preparatory work in the EDPB takes place in various working groups. There are currently over ten working groups, and IMY participates in all of them, which means more than one hundred working group meetings in 2023. Additionally, the Coordinated Supervision Committee (CSC) held four meetings. The EDPB's meetings are primarily held digitally.

****3.4.3. Other International Work****

****Nordic Cooperation Meetings****

The supervisory authorities in the Nordic countries have long had close cooperation and meet annually. Both heads of authorities and staff from various parts of the organization participate in these meetings to exchange knowledge and experiences. This year, the Nordic meeting was held in Reykjavik and was followed up with another meeting in connection with an EDPB plenary. In the joint declaration from the May meeting, an intention was expressed to further strengthen cooperation by more continuously sharing experiences and collaborating on various issues, particularly regarding the EU's digital decade.

****Coordinated Supervision of EU Common IT Systems****

Within the EU cooperation, there are several common IT systems where member countries register personal data for purposes such as border control and crime prevention. IMY is the national supervisory authority and must ensure that the processing in the Swedish part of the systems is carried out correctly. To also coordinate the supervision of these systems at the EU level, IMY meets with representatives from other European supervisory authorities. For some of the common IT systems and EU bodies, coordination occurs within the special committee under the EDPB (CSC, see above). For other systems, coordination takes place in specific groups, namely the working group for coordinated supervision of Eurodac and the Visa Information System (VIS). Meetings in these two groups are held in conjunction with each other and have taken place on two occasions in 2023.

****Global Cooperation in Data Protection Issues****

Even outside the EU, active cooperation is ongoing in data protection and privacy issues. We have seen an increasing need to participate more clearly in global cooperation, as the outside world has a significant interest in the EU's regulatory framework in this area and is working to align with us. Resolutions and other documents are also being developed on the global stage that may be significant for our work. Therefore, we have aimed to gradually increase our participation in international forums. During the year, we participated in the annual conference of European data protection authorities as well as in meetings of the Berlin Group. The Berlin Group is an international working group on new technology and data protection.

****3.4.4. Overall Assessment of Work within EDPB and Other International Cooperation****

****Activity****

Work within EDPB and other international cooperation.

****Assessment****

Good, the operations function well.

****Performance****

Quantitative performance data is lacking.

****Result Indicators****

Indicators are lacking.

****Qualitative Reasoning****

As before, we assess that the operations function well because we, in relation to our size, are very active in the EDPB. We prioritize participating in all working groups and lead the work on several central guidelines and working groups. Our issues are inherently international. Our active and engaged

participation in EU cooperation is a prerequisite for promoting Swedish legal tradition when the interpretation and application of the General Data Protection Regulation is shaped.

3.5. Other Tasks Related to Data Protection

Table 10. Other Tasks Related to Data Protection

2023

2022

2021

Personal Data Incidents (PUI)

PUIs received

5,961

5,333

5,767

PUIs closed

6,033

5,621

5,928

PUI processing time, days

63

31

53

PUI unit cost, SEK

1,083

553

276

Legality Checks

Legality checks, received

8

8

13

Legality checks, closed

12

16

4

Legality checks, processing time, days

593

294

196

Preliminary Consultations

Preliminary consultations, received

16

13

24

Preliminary consultations, closed

16

18

22

Preliminary consultations processing time, days

73

56

70

Preliminary consultations according to CSAM

0

0

–	
Codes of Conduct	
Codes of conduct, received	
1	
2	
0	
Codes of conduct, closed	
0	
0	
2	
Codes of conduct, processing time, days	
–	
–	
1,010	
Binding Corporate Rules (BCR)	
BCR, received	
34	
39	
89	
BCR, closed	
32	
52	
89	
BCR, processing time, days	
47	
146	
44	
Permit for Data Processing Violations	
Application for permit for data processing violations, received	
28	
94	
108	
Application for permit for data processing violations, closed	
26	
171	
51	
Application for permit for data processing violations, processing time	
308	
186	
5,101	
Whistleblowing	
Whistleblowing, received	
95	
20	
–	
Notifications about Data Protection Officers	
Notifications about Data Protection Officers, received	
2,004	
2,121	
2,021	

1. In the 2022 annual report, we incorrectly stated this figure as 196, while in the 2021 annual report it is stated as 510.

36

0

200

400

600

800

1,000

1,200

1,400

1,600

1,800

Received

Number

Closed

Outstanding balance

483

467

431

699

643

478

328

566

460

525

203

292

253

402

276

586

361

540

987

499

1,197

424

495

399

DEC 2022

JAN

FEB

MAR

APR

MAY

JUN

JUL

AUG

SEP

OCT

NOV

DEC

598
682
718
774
1,030
1,352
1,391
1,517
1,742
1,295
597
526

Diagram 5. Personal Data Incidents (received, closed, balance per month 2023)

924

Part of our work involves handling various types of cases that organizations are required to submit to us under data protection regulations. This includes, for example, notifications of personal data incidents, various types of permits, or preliminary consultations. There are also certain types of cases that may come from private individuals, such as whistleblowing or requests for us to conduct legality checks.

3.5.1. Personal Data Incidents

In 2023, nearly 6,000 personal data incidents were reported to IMY, which is on par with previous years. A personal data incident is a security incident involving personal data, such as data being destroyed, altered, lost, or accessed by unauthorized parties. When a personal data incident occurs, the responsible organization must assess the risk the incident may pose to the individuals whose personal data is involved. Risks may include identity theft, fraud, financial loss, discrimination, or harmful rumor spreading. If it is likely that the personal data incident poses a risk to the rights and freedoms of natural persons, the responsible organization is obligated to report the incident to IMY within 72 hours.

The primary task of supervisory authorities in this regard is to provide advice and guidance to data controllers. During the year, IMY has produced a report on personal data incidents (read more about it in section 3.1.4.). Through the report, we provide advice and guidance on reporting personal data incidents. Incoming incident reports are an important knowledge source for IMY – we identify what is happening in various organizations and see new guidance needs.

The work to develop and improve the authority's handling of reports of personal data incidents has continued throughout 2023. The majority of the reports received by IMY are graded based on a risk assessment model. If it is assessed that there is a serious risk of harm to the registered individuals' rights and freedoms, alternatively that the...

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serious deficiencies in a data controller's handling of personal data, an incident report will be submitted for assessment on whether supervision should be initiated or not.

3.5.2. Legality Checks

Legality checks are a specific form of review that IMY conducts against law enforcement authorities to ensure that they process personal data about individuals correctly. When individuals are informed that they cannot obtain an extract from a law enforcement authority, they can turn to IMY and request a legality check. Throughout the year, all cases from previous years have been concluded. Only a couple of cases that were submitted in 2023 have carried over into 2024. The influx of new cases has remained at the same level as the previous year. The average processing time has nearly doubled, which can be explained by the conclusion of four cases that are older than three years. Just before the turn of the year, a ruling from the EU Court of Justice was issued, indicating that our methods for legality checks will need to be adapted and changed. This will mean that the processing of a legality check will require more resources in the future.

3.5.3. Prior Consultation

When an organization plans a processing of personal data that is associated with high privacy risks, it must conduct a data protection impact assessment. If the organization determines that it is not possible to mitigate the risks to individuals' freedoms and rights with measures that are reasonable based on available technology and costs, it is obliged to request prior consultation with IMY. For law enforcement authorities, the requirements for data protection impact assessments and prior consultations are more extensive than for others. In 2023, we received 16 requests for prior consultation, which is an increase compared to the previous year. Of these, IMY has only provided opinions in five cases. The other received prior consultations have either been withdrawn or rejected because they did not meet the criteria for when a prior consultation should be conducted. The prior consultations where we have provided advice have included areas related to camera surveillance. We have also advised the Police Authority regarding a technical test of ANPR technology at the Øresund Bridge.

3.5.4. CSAM Regulation

The temporary CSAM regulation is an EU regulation aimed at combating online sexual abuse of children (CSAM stands for 'child sexual abuse material'). It means that providers of certain types of communication services, such as email services and communication apps, under certain conditions, may access users' communications for the purpose of tracking material related to sexual abuse of children or searches for contact with children for sexual purposes. If a provider voluntarily wishes to start using technical solutions for tracking, it must first have conducted a prior consultation with IMY. By the end of the year, no prior consultation related to the temporary CSAM regulation had been submitted.

In May 2022, the EU Commission presented a proposal for a new, permanent CSAM regulation intended to replace the temporary regulation. It has been referred to in the media as "Chat Control 2.0." Unlike the temporary regulation, the proposal for the permanent regulation means that providers could be mandated by an authority to track all or parts of their services to search for material related to sexual abuse of children. The proposal has faced criticism, including from the EU Parliament, which in November 2023 voted through a version of the proposal that differs significantly from...

****Original Proposal.**** It is unclear when and if a permanent CSAM regulation can be decided.

****3.5.5. Codes of Conduct****

Industry organizations and other interest groups can assist their members in complying with the requirements of the Data Protection Regulation by developing a code of conduct for the processing of personal data within the industry. Codes of conduct are a tool that can contribute to better compliance with the Data Protection Regulation.

For a code of conduct to be approved by IMY, we must assess that it contributes to a correct and effective application of the Data Protection Regulation. A prerequisite for a code of conduct to be approved is that organizations tasked with monitoring compliance with codes of conduct can apply to IMY for accreditation. IMY has decided on requirements for the accreditation of monitoring bodies during the year.

The decision now allows industry organizations and other interest groups to develop codes of conduct and apply for approval from IMY. Once the code of conduct has been approved, it can be applied by the organization's members. IMY has seen interest from organizations to now begin the work of developing codes of conduct. However, IMY has not yet received any applications for the approval of a code of conduct.

****3.5.6. BCR****

Multinational corporations have the opportunity to apply for binding corporate rules (BCR) to be approved by a data protection authority within the EU. BCR are rules that corporations can develop to regulate their processing of personal data and ensure appropriate safeguards when transferring personal data within their own group, when parts of it are based in countries outside the EU/EEA. These matters have a long and complex processing time as they must be co-reviewed by other data protection authorities within the EU, and the EDPB must provide an opinion before a decision can be

made by IMY.

IMY is the responsible authority in five cases currently under processing but has been a co-reviewer in over 30. The processing time varies significantly depending on whether IMY is the responsible authority or merely provides comments in a case being handled by another data protection authority.

****3.5.7. Permission to Process Personal Data Regarding Legal Violations****

According to the Data Protection Regulation, authorities may process personal data regarding legal violations. In Swedish law, there are supplementary regulations that allow others than authorities to process such personal data. The regulations provide an opportunity for those wishing to process such data to apply for permission from IMY.

The number of applications for permission to process personal data regarding legal violations has decreased during 2023. The majority of cases concern companies in the financial sector that need to conduct checks, for example, customers against sanction lists to comply with legal requirements, such as requirements for measures against money laundering and financing of terrorism. During the year, several applications have also been received from companies conducting background checks and applying to verify whether employees and consultants have committed crimes on behalf of employers. IMY concluded significantly fewer cases compared to the previous year, which is related to several applications from member companies within associations that applied on the same grounds the previous year.

The average processing time for these cases is long. To reduce processing time and facilitate for companies, IMY has developed proposals for regulations for the processing of personal data regarding legal violations through checks against sanction lists during the year. The purpose of this is that companies meeting the requirements in the proposed regulation should not need to apply for permission for such processing that the regulation targets. The regulations are proposed to come into effect on March 1, 2024.

****3.5.8. Whistleblowing****

Since 2022, IMY has had an obligation to be able to receive reports of misconduct, so-called whistleblowing, from individuals wishing to report deficiencies regarding data protection at an employer. The work imposes special requirements for the anonymity of whistleblowers, confidentiality, personal data handling, and security. In 2023, the number of reports increased to 95 compared to 20 reports in 2022.

****3.5.9. Notifications of Data Protection Officers****

Organizations that process personal data are generally required to appoint a data protection officer and notify IMY of who has been appointed. In 2023, we received approximately 2,000 such notifications, which was essentially the same level as in 2022. The majority were change notifications, meaning that companies or other organizations appointed a new data protection officer or reported new contact details.

****3.5.10. Overall Assessment of Work with Other Tasks within Data Protection****

****Table 11. Result Indicators, Other Tasks within Data Protection****

Year	2023	2022	2021
Percentage of PUI cases closed within 30 days (processing time)	17%	67%	6%
Percentage of the balance of PUI cases older than 30 days (balance age)	21%	31%	34%
Percentage of legality checks closed within 6 months (processing time)	33%	27%	75%
Percentage of prior consultations closed within the stipulated deadline (processing time)	100%	100%	100%
Percentage of permission cases for processing personal data regarding legal violations closed within 6 months (processing time)	27%	46%	10%

14. Act (2021:890) on the protection of persons reporting misconduct and Regulation (2021:949) on the protection of persons reporting misconduct.

****Operations****

****Other tasks within data protection****

****Assessment****

Satisfactory; the operations are functioning, but improvements are needed.

****Performance****

Our performance in the area of other tasks within data protection can be found in Table 10.

Unfortunately, almost all average processing times in the annual statistics have increased. Personal data incidents are one of our volume flows. Here, the processing time has doubled.

****Result Indicators****

For the full year, the processing time for personal data incidents has increased, but the backlog has decreased. Other result indicators are also stable or have deteriorated.

****Qualitative Reasoning****

We assess that the operations have unfortunately deteriorated compared to 2022 when we assessed that they were functioning well. During 2023, the operations have functioned satisfactorily, but improvements are needed moving forward. The year 2023 has required significant focus on complaints and complaint-based supervision, which has impacted other case types. The deterioration of a volume flow such as personal data incidents greatly affects the outcome. During the autumn, we have worked to reduce the backlog and processing time, which can be seen in a low backlog at the end of December compared to the rest of the year. This is the reason why we still assess that the operations are functioning satisfactorily.

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****Result Reporting****

****on Camera Surveillance****

****4****

42

****Table 12. Camera Surveillance****

****2023****

****2022****

****2021****

****Requests for Camera Surveillance****

Requests, received

689

794

810

Requests, completed

738

718

829

Processing time for requests to the information service, days

29

21

22

Qualified requests, received

37

53

29

Qualified requests, completed

37

54

34

Qualified requests, processing time, days

55

29

54

****Complaints about Camera Surveillance****

—
—
—

Complaints, received

432

310

287

Complaints, completed

482

247

284

Complaints, processing time, days

77

56

56

****Supervision of Camera Surveillance****

—
—
—

Supervision, initiated

55

42

22

Supervision, completed

58

38

6

Supervision, processing time, days

193

187

374

****Permits for Camera Surveillance****

—
—
—

Camera surveillance permits, received

479

387

469

Camera surveillance permits, completed

435

329

379

Camera surveillance permits, processing time, days

265

241

157

Cost per camera surveillance permit, SEK

56,161

47,451

44,278

0
50
100
150
200
250
300
350
400
Received
Number
Completed
Outstanding balance

36
31
41
45
27
36
19
37
63
122
47
17
11
18
19
30
36
37
41
43
61
26
40
32

DEC 2022

JAN

FEB

MAR

APR

MAY

JUN

JUL

AUG

SEP

OCT

NOV

DEC

248

288

278

296

287

362

368

367

361

357

339

325

****Diagram 6. Applications for Camera Surveillance Permits****

(received, completed, balance per month 2023)

313

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IMY responds to inquiries, handles complaints, conducts supervision, and issues permits within the area of camera surveillance. Camera surveillance is governed by provisions in several different regulations, where both the General Data Protection Regulation and the Camera Surveillance Act are often applicable. It can be difficult to determine whether a surveillance is permitted or not, which creates a significant need for guidance.

The majority of camera surveillance conducted in Sweden today does not require a permit from IMY. This may involve surveillance in stores and public transport or surveillance carried out by private companies. However, a permit for camera surveillance is required in certain cases. This applies if an authority or anyone else, in the performance of a task of public interest, such as a private school operation or private healthcare, surveils individuals in a location accessible to the public. Certain law enforcement agencies are completely exempt from the permit requirement for camera surveillance.

Camera surveillance that does not require a permit from IMY is subject to the same rules in the General Data Protection Regulation and the Camera Surveillance Act as permitted camera surveillance, with the exception of the permit requirement itself. Camera surveillance conducted by a private individual that does not involve public spaces or anyone else's personal sphere, however, is not covered by data protection regulations. If a law enforcement agency conducts camera surveillance, the Crime Data Act applies instead of the General Data Protection Regulation, as well as specific data protection rules for each agency.

During the year, inquiries about camera surveillance accounted for approximately 20 percent of all questions received by the authority. There have been slightly fewer written inquiries about camera surveillance compared to previous years, which is a sign that the guidance we have on our website is being utilized. The inquiries often concern whether a permit is required and whether the surveillance is permitted.

As in previous years, many journalist inquiries to IMY have concerned camera surveillance. Many questions this year have related to camera surveillance in schools, but we have also answered questions about drones, dashcams, and camera surveillance in nightclubs.

More complaints about camera surveillance have been received in 2023 compared to previous years. The majority of the incoming complaints concern camera surveillance conducted by private individuals. Often, it involves neighbors who have observed surveillance cameras on a private residence and suspect that the surveillance is too extensive and therefore not permitted. The increase in incoming complaints may be due to more private individuals conducting surveillance than before, as well as an increasing number of people becoming aware that they can report unlawful camera surveillance to IMY. Other recurring complaints involve employees who complain about their employer's camera surveillance because it is perceived to control the employees, or camera surveillance in common areas of multi-family buildings. IMY has also received complaints about surveillance in restaurants, gyms, and public places.

Just under 60 complaints have led to supervision of camera surveillance in 2023, which is a significant increase compared to previous years. The majority of the supervisions of camera surveillance initiated during the year concern private individuals' camera surveillance. As in the previous year, IMY has focused on cases involving private individuals' camera surveillance, as it is the most common basis for complaints regarding camera surveillance. IMY has also initiated several supervisions concerning surveillance in multi-family buildings. During the year, approximately 60 supervision cases were concluded, which is a marked increase compared to the previous year. Nine supervision decisions have been appealed to the court.

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IMY has, for example, concluded a supervision regarding camera surveillance at a school during the year. The decision contains information that complements our previous guidance and may support other schools in assessing their camera surveillance. To facilitate stakeholders in, among other areas, the school sector, IMY has also published an updated version of the report "Guidance on Camera Surveillance." The guidance includes advice and recommendations for anyone planning to set up camera surveillance. In connection with this, IMY has also held a webinar aimed at increasing knowledge about camera surveillance and the considerations that need to be made to ensure that the surveillance is necessary. Another form of guidance is IMY's regulatory sandbox, which has worked on a project concerning Lidar in street environments as an alternative to camera surveillance (see more in section 3.1.6). In our outreach work during the year, IMY staff have also given a number of presentations on camera surveillance.

During the year, approximately 480 applications for camera surveillance permits were received, which is an increase compared to previous years. The increase can be explained by two stakeholders submitting a large number of applications. Furthermore, IMY has made nearly 440 decisions regarding permits for camera surveillance, which is an increase compared to previous years. The permit decisions made during the year primarily concern surveillance of schools (95), streets and squares (57), and healthcare facilities (55). Of the decisions made this year regarding permits, 43 percent were fully granted applications, 27 percent were partially granted applications, and 6 percent were applications that were not granted at all. Of the remaining, 20 percent were rejections, for example, for stakeholders that are not subject to permit requirements or surveillance that does not require a permit. Additionally, 5 percent were dismissals, for example, because the application was withdrawn. Finally, 2 percent were decisions where the court has referred to IMY to specify the conditions for the permit.

During the year, twelve permit decisions were appealed to the administrative court, which is in line with last year. We have received 19 rulings that have become final from the administrative court and the administrative court of appeal, as well as the Supreme Administrative Court. The judgments and decisions have provided guidance for the work with permits, for example, regarding the assessment of a location's crime vulnerability and the balancing of interests between the surveillance interest and the privacy interest, as well as whether the surveillance constitutes personal surveillance according to the Camera Surveillance Act or not.

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4.1. Overall Assessment of the Work with Camera Surveillance

Table 13. Result Indicators, Camera

2023

2022

2021

Percentage of inquiries about camera surveillance to the information service that are answered within 10 days (processing time)

79%

46%

52%

Percentage of the balance of inquiries about camera surveillance to the information service that are older than 10 days (balance age)

0%

75%

0%

Percentage of the balance of qualified inquiries about camera surveillance that are older than 2 months (balance age)

67%

13%

100%

Percentage of complaints about camera surveillance that are answered after 3 months (processing time)

34%

13%

20%

Percentage of the balance of complaints about camera surveillance that are older than 3 months (balance age)

35%

11%

37%

Percentage of permit cases regarding camera surveillance that are older than 4 months (balance age)

67%

57%

66%

Operations

Work with Camera Surveillance

Assessment

Satisfactory; the operations function, but improvements are needed.

Performance

Our performance within the operations is found in Table 12. The entire supervisory operation has improved, with more initiated and concluded supervisions. The complaints operation has also improved, with significantly more concluded complaints. Inquiries are increasingly handled in the first line, which means that significantly more questioners receive answers to their questions within a shorter time compared to if the question is assessed as qualified and handed over to another unit for response. Overall, however, this means that the processing time for questions in the first line has become longer. The development regarding permits is twofold. We conclude significantly more cases, but have longer processing times, while the inflow increases.

Result Indicators

We can state that the balance age for inquiries is greatly affected by the extent to which they are qualified or not. Qualified inquiries negatively impact the statistics for inquiries overall. Regarding camera permits, the balance remains high due to long processing times. Processing times have increased over the entire year, but we see tendencies for a trend break with shorter processing times during the autumn.

Qualitative Reasoning

We assess that the operations function satisfactorily despite the work with permits still not being good enough. The work with complaints and supervision has improved. During the year, we have also worked specifically to provide guidance in the area of camera surveillance, both through a comprehensive guidance report and through the regulatory sandbox's projects concerning camera-related issues.

Reporting on Debt Collection and Credit Information Operations

5

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Table 14. Debt Collection, Inquiries, Complaints, Supervision, and Licenses

2023

2022

2021

Inquiries Debt Collection

Inquiries, received

143

119

140

Inquiries, completed

150

111

142

Inquiries, processing time, days

30

24

22

Complaints Debt Collection

Complaints, received

228

188

171

Complaints, completed

255

168

173

Complaints, processing time, days

76

35

51

Supervision Debt Collection

Supervision cases, initiated

0

1

2

Supervision cases, completed

1

1

1

Supervision cases, processing time, days

536

84

163

Licenses Debt Collection

Licenses, received

60

61

55

Licenses, completed

67

63

50

License cases, processing time, days

40

43

35

Table 15. Credit Reporting, Inquiries, Complaints, Supervision, and Licenses

2023

2022

2021

Inquiries Credit Reporting

Inquiries, received

183

180

188

Inquiries, completed

193

174

189

Inquiries, processing time, days

29

24

17

Complaints Credit Reporting

Complaints, received

122

99

120

Complaints, completed

134

92

112

Complaints, processing time, days

105

42

59

Supervision Credit Reporting

Supervision cases, initiated

3

0

1

Supervision cases, completed

2

1

3

Supervision cases, processing time, days

41

300

609

Licenses Credit Reporting

Licenses, received

11

10

2	
Licenses, completed	13
4	
5	
Licenses, processing time, days	285
244	
209	
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IMY is responsible for supervision and issuing licenses for companies engaged in debt collection or credit reporting. We receive complaints and respond to inquiries related to such activities. The purpose is to ensure that good practice is maintained in debt collection and credit reporting activities. 2023 was the last year we had responsibility for licenses and supervision under the Debt Collection Act.

5.1. Debt Collection

In the autumn of 2023, the government submitted a proposal to the parliament that the responsibility for licenses and supervision under the Debt Collection Act should be consolidated with the Financial Supervisory Authority starting in 2024. The supervisory responsibility has until now been divided between IMY and the Financial Supervisory Authority. The government argued that by consolidating the supervisory responsibility with one authority, it becomes easier for individuals to know where to turn with comments and complaints. Additionally, the risk of differences in assessments and practices in the field is reduced. IMY has welcomed the change.

During the autumn, IMY has worked on preparations to ensure that the transition of the debt collection assignment goes as smoothly as possible. This has included the repeal of the regulations and general advice that IMY had in the debt collection area, communication with the public and license holders, contact with cooperating authorities in the debt collection area, adjustments in IMY's internal systems, and the practical details regarding the handover of completed and ongoing cases. The preparatory work has been conducted in close collaboration with the Financial Supervisory Authority.

At the end of the year, there were just over 150 actors with IMY's license to conduct debt collection activities. In addition to these, organizations that only collect their own claims, and therefore do not need a license, have also been included in our supervisory responsibility. Among the debt collection companies licensed by IMY, there have been a handful of large companies, but most have been smaller actors such as law firms and accounting companies. Our supervisory and licensing responsibility has not included the debt collection companies that have been under the supervision of the Financial Supervisory Authority, which has included several large debt collection firms.

IMY has maintained a basic level in the assignment throughout the year. In total, the authority has spent less than one percent of our total time on debt collection, which corresponds to less than one full-time equivalent. The average processing time for completed debt collection cases has increased during the year. At the same time, we have completed more inquiries and complaints compared to last year. Approximately 140 written inquiries regarding debt collection activities have been received during the year. Additionally, questions are posed to our guidance phone. Individuals wonder, for example, how to make objections to a debt collection claim, what deadlines apply, and what costs companies are allowed to charge. Businesses that conduct or plan to conduct debt collection activities ask questions, for example, about what is required to obtain a license or what constitutes good debt collection practice. To provide support, we have also conducted training on good debt collection practice for new debt collection case handlers at the industry organization Swedish Debt Collection's member companies on two occasions during the year.

Nearly 230 complaints about debt collection activities were received by IMY in 2023, which is an increase compared to last year. Furthermore, almost 260 complaints were completed, which is also an increase. No supervision has been initiated. In the latter part of the year, IMY has strived to conclude cases, and at the end of 2023, IMY handed over 10 ongoing cases to the Financial Supervisory

Authority.

15. Government's proposition 2023/24:23: Acquisition and management of certain credit agreements.

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5.2. Credit Reporting

IMY conducts supervision and issues permits for companies engaged in credit reporting activities. We also receive complaints and respond to inquiries related to credit reporting activities. In light of the extensive data IMY holds concerning the General Data Protection Regulation, and particularly the new approach to complaints and supervision, the authority has had a relatively low priority for supervisory activities in the credit reporting area over the past year.

Credit reporting companies collect information about individuals' financial and personal circumstances as well as about companies' financial conditions. The Credit Reporting Act is intended to protect the personal integrity of the registered individuals and to contribute to effective credit reporting. Currently, there are 24 entities that have IMY's permission to conduct credit reporting activities.

During the year, IMY initiated and concluded two supervisory cases concerning the Credit Reporting Act. We have seen an increase in the number of incoming and concluded complaints. The most common complaint is that the individual in question has been affected by an incorrect payment remark. Complaints may also concern instances where a credit report was obtained despite there being no reason to check the individual's financial situation.

5.3. Overall Assessment of the Work with Debt Collection and Credit Reporting Activities

Table 16. Performance Indicators, Debt Collection

2023

2022

2021

Proportion of the balance of qualified debt collection inquiries older than 2 months (balance age)

0 %

2 %

31 %

Proportion of complaints about debt collection that are responded to after 3 months (processing time)

42 %

4 %

13 %

Proportion of permit cases concerning debt collection older than 3 months (balance age)

0 %

13 %

4 %

Table 17. Performance Indicators, Credit Reporting

2023

2022

2021

Proportion of the balance of qualified credit reporting inquiries older than 2 months (balance age)

0 %

2 %

67 %

Proportion of complaints about credit reporting that are responded to after 3 months (processing time)

46 %

12 %

35 %

Proportion of permit cases concerning credit reporting older than 3 months (balance age)

75 %

100 %

71 %

Operations

Debt Collection and Credit Reporting

Assessment

Satisfactory; the operations function, but improvements are needed.

Performance

Our performance in the areas of debt collection and credit reporting can be found in Tables 14 and 15. Compared to other areas of operation, these are small case categories, making it difficult to discern any trends or notable points. The results of the operations are somewhat better than in previous years in terms of having concluded more cases than before, but worse in terms of longer processing times.

Performance Indicators

In the performance indicators for debt collection and credit reporting, some improvements can be seen, but there are deteriorations regarding complaints. It should be emphasized that the volumes behind these figures are relatively small.

Qualitative Reasoning

We assess that the operations function satisfactorily as it shows comparable results to previous years, despite having taken a back seat when we needed to prioritize complaints within data protection.

Operational and Organizational Development

IMY aims to be an attractive employer that offers development opportunities, trust-based leadership, and a flexible, pleasant, and supportive work environment. During the year, we have restructured our organization to fit our size and initiated work for more efficient digital support in daily operations and more effective communication efforts.

6.1. New Organization – New Units and Management Forum

To adapt the operations to the changed conditions that have arisen due to our significant growth in 2023, we made several organizational changes. We have introduced departments in two phases, which represents a new organizational level for IMY. The Department for Public Operations and the Department for Business were established in the spring, and department heads were appointed. In the fall, a Department for Operational Support was added. This means that all units, except for the staff and legal unit, belong to a department. The composition of the authority's management group has also changed to include the Director General, the Chief Legal Officer, the Head of Staff, and the three department heads. Through this change, the management group has gained a distinct strategic responsibility for the operations.

The number of units has increased, and they have fewer employees to enable close leadership in daily operations for all staff. The tasks have been streamlined and distributed to achieve scaling effects and learning among employees. We strive for greater mobility between units and more standardized working methods in our operational processes, to enable more people to support others when certain units are more burdened during periods. However, there is still a division of responsibilities for different tasks across various units.

The departments coordinate and lead the operational work with support from departmental management groups. Additionally, there is a management forum, consisting of all managers in the authority. The management forum addresses cross-authority issues within the framework of the annual operational governance, such as directional decisions, operational planning, and in-depth operational follow-up.

In September, our Director General Lena Lindgren Schelin left after more than 5 years at IMY. Since then, IMY has been led by an acting Director General.

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6.2. Our Digital Journey Has Begun

In the autumn, the starting signal was given for the digital development work that we call our digital journey. It is a comprehensive effort that will continue for many years to come. In recent years, we have focused our digital operational development on e-services and our website. The need to review and address our digital support, particularly in operational activities, is evident and is frequently raised as a need by both employees and managers.

6.3. The Start of a New Communicative Effort

We are aware that our area, data protection and privacy, is perceived by many as complex, abstract, and difficult. At the same time, survey after survey on digital privacy shows the need for more people to understand more. To improve our chances of conveying our knowledge and guidance, we have worked on a messaging platform this year and begun training spokespersons on various topics.

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Competence Supply

7

55

Table 18. Competence Supply

2023

2022

2021

Number of employees as of December 31

132

121

113

Number of annual workforces

109

105

89

Average number of employees

128

120

103

The competence supply at IMY is intended to support our ability to carry out our mission and enable flexible adaptation to new conditions. Important components of the competence supply include the development of staff skills, internal mobility, and recruitment of new employees.

As a result of the increased allocation the authority received for 2023, 32 new employees have started their employment during the year. This means that this year's competence supply efforts have largely been dominated by receiving and training the new employees.

IMY has created a new basic training program for new hires. The purpose of the training is to effectively provide all new employees with a foundation of theoretical and practical basic knowledge and skills so that they can perform their tasks and contribute to our mission in the best possible way. In parallel with the training, each new employee has also had a mentor whose task is to provide support and guidance. The focus for the mentors is to provide help for self-help, and therefore they have participated in a seminar on coaching approaches.

As part of the authority's internal competence development program IMY Academy, employees have been offered, among other things, media training, training in legal English, lectures on ergonomics, and lectures on information security and new technology. IMY has implemented an ambitious

leadership development program for the authority's managers and employees with leadership responsibilities without formal managerial authority.

IMY has a stated goal of reducing employee turnover and increasing internal mobility. The employee turnover was 20 percent in 2023, compared to 14 percent in 2022 and 15 percent in 2021. The high employee turnover has several causes. Our employees possess expertise that is in demand in the labor market. This year's inflation, combined with a high wage level among other employers, has been a decisive factor for many employees who have ended their employment during the year. It is also natural to have a slightly higher turnover during reorganizations. We see that this year's employee turnover can be explained while it remains one of our major challenges going forward.

The reorganization that has been carried out during the year enables more flexible resource allocation. We need to adapt quickly to changing conditions, and we see that more management decisions have been made in 2023 than in previous years. This is also part of the authority's ambition to increase learning within the organization and reduce employee turnover.

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Work Environment, Health
and Sick Leave

8

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Table 19. Sick Leave, in Percent

2023

2022

2021

Total sick leave

3.16

2.55

1.55

Long-term sick leave, in relation to total sick leave

43.76

31.33

20.74

Sick leave for women

3.71

2.66

1.43

Sick leave for men

1.29

2.21

1.90

Sick leave for age group 29 years and younger

1.29

3.59

1.16

Sick leave for age group 30–49 years

3.47

2.87

1.68

Sick leave for age group 50 years and older

2.87

1.48

1.39

8.1. Work Environment

The systematic work environment efforts at IMY are based on current regulations, the authority's work environment policy, and other governing documents within the work environment area. The physical work environment is very good since the authority moved to new, completely renovated premises. This year's safety round focused on the physical work environment, and no serious risks were reported. The reorganization carried out during the year creates good conditions for close leadership that will contribute to an improved organizational work environment. Despite extensive recruitment efforts during the year with many new employees, IMY has managed to maintain the trusting culture that is highly appreciated by employees and managers.

8.2. Sick Leave, Gender Distribution, and Age

In 2023, sick leave at IMY was 3.16 percent, compared to 2.55 for 2022 and 1.55 for 2021. The rising sick leave can primarily be attributed to a few cases of long-term illness. Sick leave for women was 3.71 percent in 2023, and for men, it was 1.29 percent. During the year, we had four employees on long-term sick leave.

The gender distribution within the authority also indicates that women are in the majority in 2023; in December, 79 percent of employees were women and 21 percent were men. In the authority's new management group, the gender distribution is somewhat more balanced compared to previous years, consisting in December 2023 of four women and two men compared to nine women and two men in 2022. The average age at IMY is 42 years – 42 years for women and 44 years for men. Approximately 25 percent of employees are under 34 years old, and about 13 percent are older than 55 years.

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The Authority's Economy

9

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9.1 Grants and Contribution Revenues

The Swedish Authority for Privacy Protection is primarily funded through grants. For 2023, the authority was allocated a grant of 172,794 tkr, which was an increase of 48 million kr compared to the previous year. The authority's contribution revenues during the year consisted of grants from the Swedish Social Insurance Agency as well as travel grants from the EU, and the total revenue for the year was 186 tkr. The authority's educational activities generated revenues amounting to 88 tkr (more information about the educational activities can be found in section 3.1.2).

The significant increase in grants has mainly been utilized for an extensive recruitment effort. During the year, 32 new employees started their employment at IMY. The share of personnel costs of total costs amounts to 73 percent, compared to 77 percent in 2022. The authority's long-term ambition is to reduce the share of personnel costs to 70 percent by 2030.

Rental costs increased by 10 percent in 2023 compared to previous years, as a result of adjustments to the new premises that the authority moved into in 2022, and constitute just under 8 percent of total costs. Operating costs have increased by 61 percent compared to 2022, which can partly be explained by adjustments in the new premises, as well as higher travel costs and costs for IT and consulting services within support operations. Operating costs now account for 17 percent of total costs, compared to 12 percent in 2022. Financial costs have increased significantly from the previous year due to the high interest rate environment but only constitute 0.2 percent of the authority's total costs. The authority's total costs for 2023 amounted to 161,396 tkr, which means a consumption under the grant and a positive reported result amounting to 6,279 tkr. This is partly a result of the salary costs for the authority's director ceasing from September 1 when our director-general left the organization, and partly that the planned salary cost increase due to this year's extensive recruitment effort has fully materialized a few months later than anticipated. This year's positive financial result means that IMY will return 1,096 tkr. The authority has been granted a grant credit of 5,183 tkr for 2023 and a loan framework of 10,000 tkr. The loan framework was also increased during 2023 to 12,000 tkr.

9.2 Allocation of Costs and Revenues

The authority allocates costs and revenues in accordance with FÅB (2000:605) Chapter 2, Section 3. This means that all revenues and costs have been allocated to the authority's three operational areas – data protection, surveillance, and debt collection and credit reporting. The basis for the allocation is the personnel's time reporting, which occurs continuously throughout the year. The time reporting codes are divided into the different operational areas and codes for overhead. These codes serve as keys for the allocation of the total costs of the operations. Reported time for overhead is proportionally allocated to the operational areas. The result is a representation of time where each operational area includes overhead. On the revenue side, grant and educational revenues can be directly attributed to data protection, while the remaining part of the revenues is allocated according to the same distribution as the costs.

Below are the allocated total revenues and costs as well as allocated costs per operational area.

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Table 20. Total Costs and Revenues for the Authority

(tkr)

2023

2022

2021

Revenues from grants

160,530

134,373

118,599

Fee revenues and financial revenues

679

437

591

Revenues from contributions

186

4,120

1,505

Costs

161,396

138,930

120,695

Table 21. Costs and Revenues within Data Protection

(tkr)

2023

2022

2021

Revenues from grants

124,583

111,385

93,140

Fee revenues and financial revenues

547

428

571

Revenues from contributions

145

4,099

1,505

Costs
125,274
115,913
95,215

Table 22. Costs and Revenues within Surveillance

(tkr)

2023

2022

2021

Revenues from grants

33,645

21,084

22,807

Fee revenues and financial revenues

124

9

18

Revenues from contributions

39

19

0

Costs

33,808

21,112

22,825

Table 23. Costs for Debt Collection and Credit Reporting Operations

(tkr)

2023

2022

2021

Revenues from grants

2,302

1,903

2,653

Fee revenues and financial revenues

8

1

2

Revenues from contributions

3

2

0

Costs

2,313

1,906

2,655

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Financial
Reporting

Income Statement

(tkr)

Note

2023

2022

Operating revenues

Revenues from grants

1

160,530

134,373

Revenues from fees and other compensations

2

88

407

Revenues from contributions

186

4,120

Financial revenues

3

591

30

Total

161,396

138,930

Operating costs

Personnel costs

4

–117,660

–107,333

Costs for premises

–12,555

–11,415

Other operating costs

5

–27,257

–16,947

Financial costs

6

–360

–67

Depreciation and write-downs

–3,563

–3,169

Total

–161,396

–138,930

Operating outcome

0

0

Change in capital for the year

0

0

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Balance Sheet

(tkr)

Note

2023-12-31

2022-12-31

ASSETS

Intangible fixed assets

Capitalized development expenses

7

1,202

1,741

Rights and other intangible fixed assets

8

620

1,071

Total

1,823

2,812

Tangible fixed assets

Improvements to others' property

9

2,778

2,218

Machines, equipment, installations, etc.

10

3,939

5,743

Ongoing new constructions

11

0

114

Total

6,717

8,075

Current receivables

Accounts receivable

0

14

Receivables from other authorities

12

2,727

1,720

Other current receivables

13

6

1

Total

2,733

1,735

Accruals

Prepaid expenses

14

2,517

1,725

Total

2,517

1,725

Settlement with the state

Settlement with the state

15

–6,279

5,984

Total

–6,279

5,984

Cash and bank

Balance in interest account at the National Debt Office

16

20,554

4,737

Total

20,554

4,737

TOTAL ASSETS

28,064

25,069

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Balance Sheet Continued

(thousand SEK)

Note

2023-12-31

2022-12-31

CAPITAL AND LIABILITIES

Government Capital

17

State Capital

18

80

80

Total

80

80

Provisions

Provisions for pensions and similar obligations

19

125

177

Other provisions

20

1,231

1,017

Total

1,355

1,193

Liabilities, etc.

Loans from the National Debt Office

21

8,460

10,000

Short-term liabilities to other authorities

22

4,062

3,650

Accounts payable

5,134

2,593

Other short-term liabilities

23

2,486

1,553

Total

20,142

17,797

Accruals

Accrued expenses

24

6,486

5,999

Total

6,486

5,999

TOTAL CAPITAL AND LIABILITIES

28,064

25,069

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Grant Accounting

Grants

(thousand SEK)

Note

Opening

transfer

amount

Current year

allocation

according to

regulatory letter

Total
 available
 amount
 Expenses
 Closing
 transfer
 amount
 Uo 1 6:3 Integrity Protection Authority Framework Grant
 ap.1 Integrity Protection Authority
 25
 -5,984
 172,794
 166,810
 -160,530
 6,279
 Total
 -5,984
 172,794
 166,810
 -160,530
 6,279

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Supplementary Information and Notes

All amounts are reported in thousands of Swedish kronor (tkr) unless otherwise stated. As a result, rounding differences may occur.

Supplementary Information

Accounting Principles

Applied accounting principles

The authority's accounting follows good accounting practice and the regulation (2000:606) on the accounting of authorities as well as the Swedish National Financial Management Authority (ESV):s regulations and general advice to this regulation. The annual report is prepared in accordance with the regulation (2000:605) on annual reports and budget documentation as well as ESV:s regulations and general advice to this regulation.

In accordance with ESV:s regulations to § 10 FBF (Regulation on the accounting of authorities), the authority applies the cut-off date of January 5.

After the cut-off date, invoices exceeding 20 tkr have been recorded as accruals. The amount limit has remained unchanged since the previous year.

The notes for expenses in the income statement have been changed to show negative balances in accordance with the income statement. In the previous annual report, the amounts were shown with positive balances.

Cost-based grant accounting

Vacation days earned before the year 2009 are accounted for from and including the year 2009 against the grant only when taken according to the exception provision. The closing balance for the year 2021, 56 tkr, has been fully accounted against the grant in the year 2022.

Information on deviations

Deviations from financial administrative rules

According to the regulation on amendments (2017:1074) in the authority's instruction (2007:975), the authority may provide conferences, courses, informational materials, and course materials for a fee. The authority may determine the size of the fees up to full cost coverage and allocate the fees within the operations.

Information for comparison purposes

From 2022, the Integrity Protection Authority records grants in the grant-funded operations that are to be repaid as liabilities instead of including the funds in the balance sheet item unspent grants. For 2023, the liability amounts to 0 tkr.

Valuation Principles

Fixed Assets

As fixed assets, self-developed software, acquired licenses and rights, as well as machinery and equipment are recorded. Self-developed systems and improvement expenses have a limit of 100 tkr. For other equipment, the limit is half the price base amount.

Depreciation during the acquisition year occurs from the month the asset can be put into use.

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Applied depreciation periods

5 years

Cars and other means of transport

5 years

Self-developed software, licenses, rights

3–5 years

Systems, applications, and licenses

3–5 years

Machinery and technical installations

Other office machines

Furniture and fixtures

3 years

Computers and peripherals

The depreciation period for improvement expenses on another's property is a maximum of the remaining validity period of the lease, but at least three years. The current lease runs until April 30, 2028.

Current Assets

Receivables have been recognized at the amount they are expected to be paid after individual assessment.

Liabilities

Liabilities have been recognized at nominal amounts.

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Compensation and Other Benefits

Executive Officers

Compensation in tkr

Lena Lindgren Schelin, Director General

988

Benefit of a free car

6

Karin Lönnheden, Acting Director General

360

Board Members

Compensation in tkr

Peter Hedberg

6

Susanne Nordström

6
 Simona Mohamsson
 2
 Kristoffer Löfblad
 6
 Linn Kempe
 4
 Jonas Ledendal
 AESCAPIA AB, Board Member
 Film & Bildstudion Ledendal AB, Deputy Board Member
 4
 Åke Holmgren
 Emergency Preparedness Council
 Swedish Transmission Network's Advisory Council
 4
 Ari Stenman
 6
 Eva Lindh
 Hairdressers' Association, Board Member
 2
 Zayera Kahn
 2
 Marta Obminska
 2
 Catarina Wretman
 Cake AB, Deputy
 Seglarnas hus AB, Deputy
 2

Employee Sick Leave
 Employee sick leave is reported in Chapter 8.

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Notes

Income Statement

Note 1 Income from Grants

(thousand SEK)

2023

2022

Income from grants

160,530

134,373

Total

160,530

134,373

Expenses in grant accounting

–160,530

–134,429

Balance

0

–56

The balance consists of a reduction of the vacation pay liability earned before the year 2009. This item

has been fully accounted against the grant in the year 2022.

0

56

Total

0

56

Note 2 Income from Fees and Other Compensation

(thousand SEK)

2023

2022

Income according to § 4 of the Fee Regulation

88

394

Income from public law fees

0

9

Other income from fees and other compensation

0

4

Total

88

407

Income from fees and compensation has decreased in 2023 compared to 2022, primarily due to IMY conducting fewer training sessions during the year.

Note 3 Financial Income

(thousand SEK)

2023

2022

Interest on interest account at the National Debt Office

589

30

Other financial income

2

0

Total

591

30

Interest income has increased in 2023 due to the interest rate being raised on interest and deposit accounts during the year.

Note 4 Personnel Costs

(thousands SEK)

2023

2022

Salary costs (excluding employer contributions, pension premiums, and other fees according to law and agreement)

–71,599

–65,922

Of which salary costs for non-employed personnel

–46

–46

Social contributions

–42,989

–38,674

Other personnel costs

–3,072

–2,737

Total

–117,660

–107,333

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Note 5 Other Operating Costs

(thousands SEK)

2023

2022

Repairs and maintenance

–76

–141

Loss on disposal of fixed assets

–9

–165

Travel, representation, information

–1,217

–590

Purchase of goods

–2,330

–426

Purchase of services

–23,592

–15,584

Other

–33

–41

Total

–27,257

–16,947

Increased operating costs compared to the corresponding period last year are primarily due to higher purchases of goods and higher purchases of consulting services.

Note 6 Financial Costs

(thousands SEK)

2023

2022

Interest on loans from the Swedish National Debt Office

–341

–52

Other financial costs

–19

–15

Total

–360

–67

Interest costs have increased during 2023 due to the rise in interest rates on interest and current accounts during the year.

Balance Sheet

Note 7 Capitalized Development Expenses

(thousands SEK)

2023-12-31

2022-12-31

Opening acquisition value

2,694

1,578

Acquisitions for the year

0

1,248

Sales/disposals for the year, acquisition value

0

–132

Total acquisition value

2,694

2,694

Opening accumulated depreciation

–953

–552

Depreciation for the year

–539

–403

Sales/disposals for the year, depreciation

0

2

Total accumulated depreciation

–1,492

–953

Closing book value

1,202

1,741

Note 8 Rights and Other Intangible Assets

(thousands SEK)

2023-12-31

2022-12-31

Opening acquisition value

3,323

3,323

Acquisitions for the year

114

0

Sales/disposals for the year, acquisition value

0

0

Total acquisition value

3,437

3,323

Opening accumulated depreciation

–2,253

–1,424

Depreciation for the year

–564

–829

Sales/disposals for the year, depreciation

0

0

Total accumulated depreciation

–2,817

–2,253

Closing book value

620

1,071

Acquisitions for the year include the implementation of a new time reporting system.

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Note 9 Improvement Expenses on Another's Property

(thousands SEK)

2023-12-31

2022-12-31

Opening acquisition value

2,420

1,195

Acquisitions for the year

1,007

2,420

Sales/disposals for the year, acquisition value

0

–1,195

Total acquisition value

3,427

2,420

Opening accumulated depreciation

–201

–1,195

Depreciation for the year

–447

–201

Sales/disposals for the year, depreciation

0

1,195

Total accumulated depreciation

–648

–201

Closing book value

2,778

2,218

The acquisition for the year relates to continued adjustments of the premises that IMY moved into in 2022.

Comparative values have been recalculated.

Note 10 Machinery, Equipment, Installations, etc.

(thousands SEK)

2023-12-31

2022-12-31

Opening acquisition value
 8,352
 5,777
 Acquisitions for the year
 396
 4,314
 Sales/disposals for the year, acquisition value
 -612
 -1,739
 Total acquisition value
 8,136
 8,352
 Opening accumulated depreciation
 -2,608
 -2,446
 Depreciation for the year
 -2,013
 -1,737
 Sales/disposals for the year, depreciation
 425
 1,575
 Total accumulated depreciation
 -4,196
 -2,608
 Closing book value
 3,939
 5,743

Acquisitions for the year have decreased compared to the previous year, primarily due to IMY making larger investments in 2022, when equipment was acquired for the new premises. Acquisitions for the year consist of purchases of computers.

Note 11 Ongoing New Installations (thousands SEK)

2023-12-31

2022-12-31

Opening acquisition value

114

0

Acquisitions for the year

-114

114

Closing book value

0

114

Activation of the new time reporting system. See note 8.

Note 12 Receivables from Other Authorities (thousands SEK)

2023-12-31

2022-12-31

Receivable input VAT

2,727

1,721

Customer receivables from other authorities

0
-1
Total
2,727
1,720
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Note 13 Other Short-term Receivables

(thousands SEK)

2023-12-31

2022-12-31

Receivables from employees

6

0

Cash

0

1

Total

6

1

Note 14 Prepaid Expenses

(thousands SEK)

2023-12-31

2022-12-31

Prepaid rental costs

1,469

830

Other prepaid expenses

1,048

895

Total

2,517

1,725

Note 15 Settlement with the State

(thousands SEK)

2023-12-31

2022-12-31

Appropriation in interest-bearing flow

Opening balance

5,984

-5,306

Reported against appropriation

160,530

134,429

Appropriation funds added to interest account

-172,794

-124,792

Repayment of appropriation funds

0

1,653

Liabilities regarding appropriations in interest-bearing flow

–6,279

5,984

Receivable regarding vacation pay liability not reported against appropriation

Opening balance

0

56

Reported against appropriation during the year according to the exception rule

0

–56

Receivable regarding vacation pay liability not reported against appropriation

0

0

Total Settlement with the State

–6,279

5,984

Note 16 Balance of Interest Account at the Swedish National Debt Office

(thousands SEK)

2023-12-31

2022-12-31

Balance of interest account at the Swedish National Debt Office

20,554

4,737

Total

20,554

4,737

Amount to be settled for December between the interest account and the state central account

0

0

Granted credit according to the regulation letter

4,400

4,400

Maximum utilized credit

790

1,313

The authority received a significantly increased appropriation in 2023. The lead time for new hires meant that the authority did not have time to utilize the entire appropriation.

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****Note 17 Authority Capital****

(thousand SEK)

2023-12-31

2022-12-31

The authority capital consists solely of state capital, the value of which has remained unchanged between the years, and therefore no specification table is provided.

****Note 18 State Capital****

(thousand SEK)

2023-12-31

2022-12-31

State capital without return requirements regarding art

80

80

Closing balance

80

80

****Note 19 Provisions for Pensions and Similar Obligations****

(thousand SEK)

2023-12-31

2022-12-31

Opening provision

177

509

Pension cost for the year

0

0

Pension payments for the year

-52

-332

Closing provision

125

177

****Note 20 Other Provisions****

(thousand SEK)

2023-12-31

2022-12-31

Provision for local transition work

Opening balance

1,017

820

Change for the year

214

197

Closing balance

1,231

1,017

****Note 21 Loans from the National Debt Office****

(thousand SEK)

2023-12-31

2022-12-31

Refers to loans for investments in fixed assets.

Opening balance

10,000

6,175

Loans taken out during the year

2,234

7,038

Amortizations for the year

-3,774

-3,212

Closing balance

8,460

10,000

Approved loan limit according to the appropriation letter

12,000

11,000

****Note 22 Short-term Liabilities to Other Authorities****

(thousand SEK)

2023

2022

Outgoing value-added tax

79

3

Employer contributions

2,309

1,718

Accounts payable to other authorities

1,674

1,422

Other

0

507

Total

4,062

3,650

507 thousand SEK refers to unused grants that were repaid to the Legal, Financial and Administrative Services Agency during 2023.

****Note 23 Other Short-term Liabilities****

(thousand SEK)

2023

2022

Withholding tax on employees

2,485

1,553

Other short-term liabilities to employees

1

0

Total

2,486

1,553

****Note 24 Accrued Expenses****

(thousand SEK)

2023

2022

Accrued vacation pay including social fees

6,158

5,622

Other accrued salaries including social fees

0

10

Other accrued expenses

328

0

Accrued expenses in transfer operations

0

367

Total

6,486

5,999

Other accrued expenses refer to invoices received after the cutoff date.

****Appropriation Reporting****

****Note 25 Uo 1 6:3 ap.1 The Integrity Protection Authority (framework)****

The Integrity Protection Authority has financed the entire negative opening transfer amount of –5,984 thousand SEK from 2022 with this year's allocated funds.

According to government decision 2023-06-22 (Ju2022/03695), the Integrity Authority has been allocated an appropriation credit of 5,183 thousand SEK, which has not been utilized during the year.

The authority has a surplus of 6,279 thousand SEK from this year's appropriations in 2023. The appropriation bears interest.

****Summary of Significant Data****

(thousand SEK)

2023

2022

2021

2020

2019

Loan limit National Debt Office

Approved

12,000

11,000

10,000

10,000

13,000

Utilized

8,460

10,000

6,175

4,029

4,799

Credit lines National Debt Office

Approved

4,400

4,400

4,400

4,400

4,400

Maximum utilized

790

1,313

0

2,456

1,637

Interest account National Debt Office

Interest income

589

30

0

0

0

Interest expenses

0

0

0

0

11

Fee income

Fee income available

Estimated amount according to appropriation letter

0

0

0

0

0

Fee income

88

407

591

263

6,263

Appropriation credit

Approved

5,183

6,943

3,352

3,311

5,662

Utilized

0

5,984

0

0

4,130

Appropriation

Framework appropriation

Appropriation savings

6,279

0

5,306

2,209

0

Authorizations (not applicable)

Personnel

Number of annual work units (units)

109

105

89

89

79

Average number of employees (units)*

128

120

103

101

89

Operating cost per annual work unit

1,445

1,292

1,335

1,269

1,338

Capital change

For the year

0

0

0

0

0

Balanced

0

0

0

0

0

* In the calculation of the average number of employees, any personnel on leave of absence are not excluded.

****Signature of the Annual Report****

I certify that the annual report provides a true and fair view of the results of the operations as well as of the costs, revenues, and the authority's financial position.

Stockholm, February 20, 2024

David Törngren

Acting Director General

****This is IMY****

The Integrity Protection Authority (IMY) works to protect all citizens' personal data, such as health and financial information, ensuring that it is handled correctly and does not fall into the wrong hands. We are the ones who review that companies, authorities, and other actors comply with GDPR – the General Data Protection Regulation. We educate and guide those who process personal data. We also influence legislation. We want to see sustainable and privacy-friendly digitalization. We are convinced that it is possible to safeguard citizens' security and societal safety without unwarranted tracking and surveillance. Together with other data protection authorities in the EU, we work to ensure that citizens' personal data has the same protection throughout the union. We also work to ensure that credit reporting is conducted correctly. Our vision is a safe information society, where we together protect personal privacy.

****Contact IMY****

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